
GOVERNMENT OF THE PEOPLE'S REPUBLIC OF BANGLADESH

Ministry of Law, Justice and Parliamentary Affairs
Legislative and Parliamentary Affairs Division

**CODE OF DELEGATED/
SUBORDINATE LEGISLATION
OF BANGLADESH**

PACKAGE SD-1

Period: 1799 — 1970

Volume I : Era 1 — East India Company Period (1799-1858)
Volume II : Era 2 — British Crown Rule (1858-1947)
Volume III: Era 3 — Pakistan Period (1947-1970)

EOI Ref No. : 55.00.0000.120.14.065.24.1493
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Prepared by:

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INCEPTION REPORT

INCEPTION REPORT — PACKAGE SD-1 (1799-1970)

PREPARATION OF CODE OF DELEGATED/SUBORDINATE LEGISLATION OF BANGLADESH

Covering the Period: 1799-1970

Submitted by: THE LEGAL EMPIRE
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Project Name : Strengthening Legislative Capacity and Legal Awareness
Building Project

Client : Legislative and Parliamentary Affairs Division,
Ministry of Law, Justice and Parliamentary Affairs,
Government of the People's Republic of Bangladesh

EOI Ref No. : 55.00.0000.120.14.065.24.1493

Project Code : 224359600

Package No. : SD-1 (1799-1970)

Project Period : 01/06/2026 to 31/05/2027

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1. INTRODUCTION AND BACKGROUND

The Government of the People's Republic of Bangladesh, through the Legislative and Parliamentary Affairs Division under the Ministry of Law, Justice and Parliamentary Affairs, has initiated the "Strengthening Legislative Capacity and Legal Awareness Building Project" (Project Code: 224359600). A key component of this project is the preparation of a comprehensive Code of Delegated/Subordinate Legislation of Bangladesh.

Package SD-1 specifically covers the identification, collection, analysis, classification, and codification of ALL delegated/subordinate legislations (rules, regulations, by-laws, orders, notifications, circulars, etc.) enacted, promulgated, or issued during the period 1799 to 1970.

This Inception Report outlines our understanding of the assignment, the methodology to be adopted, sources to be consulted, the classification framework, work plan, team deployment, and quality assurance measures.

2. SCOPE OF PACKAGE SD-1

Package SD-1 encompasses the following:

- a) Systematic identification of ALL delegated/subordinate legislations issued during 1799-1970 that are applicable or were applicable to the

territory of present-day Bangladesh.

- b) Collection and compilation of the full texts of identified subordinate legislations from official gazettes, government archives, and other authoritative sources.
- c) Legal analysis of each subordinate legislation, including:
 - Identification of the parent/enabling Act
 - Classification by subject matter, ministry, and legal authority
 - Determination of current status (active, amended, repealed, obsolete)
 - Cross-referencing with subsequent amendments and repeals
- d) Preparation of a structured Code of Delegated/Subordinate Legislation with appropriate indexing, cross-referencing, and annotation.

3. HISTORICAL CONTEXT (1799-1970)

The period 1799-1970 spans three distinct political and legal eras, each with its own legislative framework and system of delegated legislation:

ERA 1: EAST INDIA COMPANY AND EARLY BRITISH RULE (1799-1858)

Period : 1799-1858

Territory : Bengal Presidency (including present-day Bangladesh)

Sovereign : East India Company / British Crown (after 1858)

Key Legislative Milestones:

- Bengal Regulations (1799-1834): The earliest codified regulations for Bengal, enacted by the Governor-General in Council. These regulations governed revenue collection, judicial administration, police, land tenure, and various civil and criminal matters.
- Charter Act of 1833: Centralized legislative power in the Governor-General of India in Council. Bengal Regulations ceased after 1834, replaced by Acts of the central legislature.
- Charter Act of 1853: Further legislative reforms.

Types of Subordinate Legislation:

- Bengal Regulations (quasi-legislative in nature)
- Governor-General's Orders and Notifications
- Revenue Board Circulars and Orders
- Judicial Circulars
- Executive Orders under Regulations

ERA 2: BRITISH CROWN RULE (1858-1947)

Period : 1858-1947

Territory : Bengal Province / East Bengal (present-day Bangladesh)

Sovereign : British Crown

Key Legislative Milestones:

- Government of India Act 1858: Transfer of power from EIC to Crown
- Indian Councils Act 1861: Provincial legislative councils established
- Indian Councils Act 1892: Expanded legislative councils
- Government of India Act 1909 (Morley-Minto Reforms)
- Government of India Act 1919 (Montagu-Chelmsford Reforms): Dyarchy introduced; provincial governments gained rule-making powers
- Government of India Act 1935: Provincial autonomy; expanded delegated legislation powers
- Partition of Bengal 1905 (reversed 1911): Created Eastern Bengal and

Assam province

- Partition of India 1947: East Bengal became part of Pakistan

Types of Subordinate Legislation:

- Rules framed under Acts of the Central Legislature
- Rules framed under Acts of the Bengal Legislative Council/Assembly
- Regulations under various Codes (CPC, CrPC, IPC)
- Municipal by-laws and local body regulations
- Notifications in the official Gazette
- Executive Orders and Government Resolutions
- Revenue and land tenure rules
- Educational regulations
- Police and prison rules

ERA 3: PAKISTAN PERIOD (1947-1970)

Period : 1947-1970

Territory : East Pakistan (East Bengal) — present-day Bangladesh

Sovereign : Dominion/Republic of Pakistan

Key Legislative Milestones:

- Independence Act 1947: Pakistan created; inherited British Indian laws
- Government of India (Adaptation) Order 1947
- Constitution of Pakistan 1956 (first constitution)
- Martial Law 1958-1962 (Ayub Khan)
- Constitution of Pakistan 1962
- Martial Law 1969-1970 (Yahya Khan)
- Legal Framework Order 1970

Types of Subordinate Legislation:

- Rules under central and provincial Acts
- Ordinance rules and regulations
- Martial Law Orders and Regulations (MLOs, MLRs)
- Governor's Orders
- Municipal and local body by-laws
- Service rules and regulations
- Industrial and trade regulations
- Family law rules
- Revenue and tax rules
- Education and university rules
- Cooperative society rules

4. OBJECTIVES

The specific objectives of the SD-1 assignment are:

- a) To create a complete and authoritative inventory of ALL delegated/ subordinate legislations enacted during 1799-1970 applicable to present-day Bangladesh.
- b) To collect and preserve the full texts of all identified subordinate legislations.
- c) To analyze each subordinate legislation for its legal standing, applicability, and current status.
- d) To classify and categorize all subordinate legislations using a standardized framework.
- e) To prepare a structured Code of Delegated/Subordinate Legislation

that serves as a comprehensive, accessible, and authoritative reference for lawmakers, judiciary, legal practitioners, government agencies, and the public.

- f) To identify inconsistencies, overlaps, gaps, and obsolete provisions within the body of subordinate legislation.
- g) To provide recommendations for legislative reform where appropriate.

5. METHODOLOGY AND APPROACH

Our methodology follows a five-phase approach:

PHASE 1: INCEPTION AND PLANNING (Month 1)

- Detailed review and analysis of Terms of Reference
- Finalization of methodology and classification framework
- Identification and mapping of all data sources and repositories
- Establishment of digital database structure
- Initial stakeholder consultations
- Submission of Inception Report

PHASE 2: IDENTIFICATION AND COLLECTION (Months 2-5)

- Systematic search of official gazettes (1799-1970)
- Archival research at:
 - * Bangladesh Gazette archives
 - * National Archives of Bangladesh
 - * Bangladesh Parliament Library
 - * Supreme Court Library
 - * Law Commission Library
 - * District Record Rooms
 - * University law libraries
- Cross-referencing with parent Acts to identify all subordinate legislation made thereunder
- Creation of Master Inventory with unique reference numbers
- Digital scanning and preservation of source documents
- Periodic progress reports to the Project Office

PHASE 3: ANALYSIS AND CLASSIFICATION (Months 4-8)

- Legal analysis of each identified subordinate legislation:
 - * Identification of parent/enabling Act and section
 - * Determination of the rule-making authority
 - * Assessment of legal validity and constitutional compliance
 - * Determination of current status:
 - (i) Active/In Force
 - (ii) Amended (with amendment history)
 - (iii) Repealed (with repealing instrument)
 - (iv) Obsolete/Spent
 - (v) Superseded
 - * Subject matter classification
 - * Ministry/Division classification
- Cross-referencing between related subordinate legislations
- Identification of inconsistencies, conflicts, and gaps
- Quality review of analysis

PHASE 4: CODIFICATION AND DRAFTING (Months 7-10)

- Preparation of the Code structure and format
- Drafting of the Code with:
 - * Chronological arrangement within each category

- * Subject matter index
- * Ministry/Division index
- * Parent Act cross-reference index
- * Status index (active/repealed/amended)
- * Alphabetical index
- * Keyword search index
- Annotation of each entry with:
 - * Full citation
 - * Parent Act reference
 - * Amendment history
 - * Current status
 - * Cross-references
 - * Brief synopsis
- Internal quality review and peer verification

PHASE 5: FINALIZATION AND SUBMISSION (Months 10-12)

- Draft Code submission to Project Office
- Stakeholder review and consultation
- Incorporation of feedback
- Final quality assurance review
- Submission of Final Code with all supporting documentation
- Presentation to the Project Office and relevant authorities

6. SOURCES AND REPOSITORIES

The following sources and repositories will be consulted:

PRIMARY SOURCES:

- a) Official Gazettes:
 - Bengal Gazette / Calcutta Gazette (1799-1947)
 - East Bengal / East Pakistan Gazette (1947-1970)
 - Gazette of India (1858-1947)
 - Gazette of Pakistan (1947-1970)
- b) Government Archives:
 - National Archives of Bangladesh, Dhaka
 - Bangladesh National Museum archives
 - District Record Rooms (especially Dhaka, Chittagong, Rajshahi)
 - Revenue Record Rooms
- c) Legislative Records:
 - Bangladesh Parliament (Jatiya Sangsad) Library
 - Records of the Bengal Legislative Council/Assembly
 - Records of the East Pakistan Provincial Assembly
- d) Judicial Records:
 - Supreme Court of Bangladesh Library
 - High Court Division records
 - District court archives

SECONDARY SOURCES:

- e) Law Libraries:
 - Bangladesh Law Commission Library
 - Dhaka University Law Library
 - Bangladesh Bar Council Library
 - Attorney General's Office Library
- f) Published Compilations:

- The Bengal Code (published compilations)
- Unrepealed General Acts of Bengal (various editions)
- Pakistan Code
- East Pakistan Code
- Various annotated law books and commentaries

g) Digital Resources:

- Bangladesh Laws Online (bdlaws.minlaw.gov.bd)
- LawsOfBangladesh.com
- Indian Kanoon (for historical British Indian legislation)
- British Library digital archives
- Commonwealth Legal Information Institute (CommonLII)

7. CLASSIFICATION FRAMEWORK

All identified subordinate legislations will be classified using the following multi-dimensional framework:

DIMENSION 1: HISTORICAL ERA

- Era 1: East India Company Period (1799-1858)
- Era 2: British Crown Rule (1858-1947)
- Era 3: Pakistan Period (1947-1970)

DIMENSION 2: TYPE OF INSTRUMENT

- Rules
- Regulations
- By-Laws
- Orders (Executive, Statutory, General, Special)
- Notifications (Statutory, General)
- Circulars
- Schemes
- Directions

DIMENSION 3: SUBJECT MATTER (Major Categories)

01. Constitutional and Administrative Law
02. Criminal Law and Justice
03. Civil Law and Justice
04. Land and Revenue
05. Local Government and Municipal Affairs
06. Education
07. Health and Sanitation
08. Labour and Employment
09. Trade, Commerce and Industry
10. Finance, Banking and Taxation
11. Transport and Communication
12. Agriculture, Fisheries and Livestock
13. Forests and Environment
14. Police and Public Order
15. Prisons and Correctional Services
16. Registration and Stamps
17. Family Law and Personal Law
18. Military and Defence
19. Religious and Charitable Endowments
20. Miscellaneous

DIMENSION 4: RULE-MAKING AUTHORITY

- Governor-General in Council

- Governor of Bengal/East Pakistan
- Central/Federal Government
- Provincial Government
- Specific Ministry/Division
- Statutory Body/Authority
- Local Government/Municipal Authority

DIMENSION 5: CURRENT STATUS

- Active/In Force
- Amended (with history)
- Repealed (with instrument)
- Obsolete/Spent
- Superseded
- Partially in Force
- Status Uncertain (requires further verification)

8. WORK PLAN AND TIMELINE

Month	Phase	Key Activities and Deliverables
1	Inception & Planning	- Inception Report submitted - Methodology finalized - Source mapping completed - Database structure established
2	Identification & Collection	- Gazette search commenced (1799-1858) - Archival research initiated - Initial inventory building
3	Identification & Collection	- Gazette search (1858-1900) - Cross-referencing with parent Acts - Progress Report 1
4	Identification & Collection + Analysis	- Gazette search (1900-1947) - Analysis of Era 1 legislations begun - Master Inventory update
5	Identification & Collection + Analysis	- Gazette search (1947-1970) - Analysis of Era 2 legislations - Progress Report 2
6	Analysis & Classification	- Complete analysis of all eras - Classification framework applied - Cross-referencing completed
7	Analysis & Classification + Codification begins	- Status determination for all entries - Inconsistency identification - Code structure finalized - Progress Report 3
8	Analysis & Classification + Codification	- Analysis quality review - Codification of Era 1 - Draft Code (Era 1) prepared
9	Codification	- Codification of Era 2 - Draft Code (Era 2) prepared - Progress Report 4
10	Codification + Finalization begins	- Codification of Era 3 - Complete Draft Code compiled - Draft submitted for review
11	Finalization	- Stakeholder review - Feedback incorporation - Final quality assurance - Progress Report 5
12	Finalization & Submission	- Final Code submitted - All supporting documents submitted - Presentation to authorities - Final Report

9. TEAM DEPLOYMENT

Role	Deployment	Primary Phase(s)

Team Leader / Lead Legal Consultant	Full-time	All Phases
Senior Legal Researcher	Full-time	Phases 2, 3, 4
Legislative Drafting Specialist	Full-time	Phases 3, 4, 5
Legal Analyst / Codification Expert	Full-time	Phases 2, 3, 4
Data Management & IT Specialist	Full-time	All Phases
Research Associate	Full-time	Phases 2, 3
Quality Assurance / Review Specialist	Part-time (escalating)	Phases 3, 4, 5

Additional support staff (paralegals, data entry operators) will be deployed as needed during the collection and codification phases.

10. QUALITY ASSURANCE FRAMEWORK

- Source Verification: Every subordinate legislation entry will be verified against at least TWO independent sources.
- Legal Review: All analysis and classification will be reviewed by a senior legal professional.
- Peer Review: Cross-checking by team members to ensure consistency.
- Random Sampling: Periodic random sampling and audit of entries for accuracy and completeness.
- Stakeholder Validation: Periodic reviews by the Project Office.
- Final Quality Audit: Comprehensive audit before final submission.

11. EXPECTED DELIVERABLES

- Inception Report (this document)
- Master Inventory/Database of all subordinate legislations (1799-1970)
- Analysis and Classification Report
- Code of Delegated/Subordinate Legislation (SD-1: 1799-1970)
 - Volume I: Era 1 — East India Company Period (1799-1858)
 - Volume II: Era 2 — British Crown Rule (1858-1947)
 - Volume III: Era 3 — Pakistan Period (1947-1970)
- Index Volumes (Subject, Ministry, Parent Act, Chronological, Status)
- Summary of Findings and Recommendations
- Digital Database (searchable)
- Monthly/Periodic Progress Reports
- Final Report

12. RISKS AND MITIGATION

Risk	Likelihood	Impact	Mitigation
Unavailability of historical gazette records	High	High	Multiple source strategy; use secondary sources and published compilations
Incomplete or damaged archival records	Medium	Medium	Cross-referencing with multiple repositories; note gaps in inventory
Ambiguous legal status of some subordinate legislations	Medium	Medium	Expert legal analysis; judicial precedent review; flag uncertain cases
Volume of subordinate legislations exceeds initial estimates	High	Medium	Phased approach; adequate team deployment; use of technology for efficiency
Access restrictions to certain archives	Low	High	Early coordination with Project Office for access;

			alternative source mapping
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Language barriers (Persian, Urdu texts in early period)	Medium	Medium	Engage translators for Persian/Urdu texts; consult language experts

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Date: [Insert Date]

Version: 1.0

END OF INCEPTION REPORT

MASTER INVENTORY — ERA 1 (1799-1858)

MASTER INVENTORY OF SUBORDINATE LEGISLATIONS — ERA 1 (1799-1858)

EAST INDIA COMPANY PERIOD

BENGAL PRESIDENCY (INCLUDING PRESENT-DAY BANGLADESH)

Package SD-1 | Code of Delegated/Subordinate Legislation of Bangladesh

NOTE: Each entry is assigned a unique reference number in the format:

SD-1/E1/XXXX (SD-1 = Package, E1 = Era 1, XXXX = Serial Number)

SECTION A: BENGAL REGULATIONS (1799-1834)

The Bengal Regulations were enacted by the Governor-General in Council and constituted the primary body of codified law for the Bengal Presidency. While quasi-legislative in nature, they functioned as delegated legislation under the authority granted by successive Charter Acts.

A.1: REVENUE AND LAND REGULATIONS

Ref No. : SD-1/E1/0001

Title : Bengal Regulation I of 1799

(Regulation for the Administration of Justice in Revenue Matters in the Bengal Presidency)

Date : 1799

Type : Regulation

Subject : Land and Revenue

Authority : Governor-General in Council

Parent Act : Charter Act of 1793

Scope : Revenue administration, rent collection, land disputes

Status : Repealed/Superseded

Notes : Foundation of revenue administration in Bengal

Ref No. : SD-1/E1/0002

Title : Bengal Regulation II of 1799

(Regulation for the Administration of the Revenue of Bengal)

Date : 1799

Type : Regulation

Subject : Land and Revenue

Authority : Governor-General in Council

Parent Act : Charter Act of 1793

Scope : Revenue assessment and collection procedures

Status : Repealed/Superseded

Ref No. : SD-1/E1/0003

Title : Bengal Regulation I of 1800

(Regulation for Decennial Settlement of Revenue)

Date : 1800

Type : Regulation

Subject : Land and Revenue

Authority : Governor-General in Council

Parent Act : Charter Act of 1793

Scope : Revenue settlement, zamindari rights

Status : Repealed/Superseded

Notes : Relates to the Permanent Settlement system

Ref No. : SD-1/E1/0004

Title : Bengal Regulation VII of 1799

(Regulation for Recovery of Revenue Arrears)

Date : 1799

Type : Regulation

Subject : Land and Revenue

Authority : Governor-General in Council

Parent Act : Charter Act of 1793

Scope : Enforcement of revenue payment, sale of defaulting estates

Status : Repealed/Superseded

Ref No. : SD-1/E1/0005
Title : Bengal Regulation VIII of 1793
(Regulation for the Permanent Settlement of the Revenues of Bengal, Bihar and Orissa)
Date : 1793
Type : Regulation
Subject : Land and Revenue
Authority : Governor-General in Council (Lord Cornwallis)
Parent Act : Charter Act of 1793
Scope : Permanent Settlement of land revenue
Status : Historical — Superseded by later land reform legislation
Notes : Foundational regulation for land revenue in Bengal; established the zamindari system

Ref No. : SD-1/E1/0006
Title : Bengal Regulation XLIV of 1793
(Regulation for Revenue Administration and Collection)
Date : 1793
Type : Regulation
Subject : Land and Revenue
Authority : Governor-General in Council
Parent Act : Charter Act of 1793
Scope : Detailed procedures for revenue administration
Status : Repealed/Superseded

Ref No. : SD-1/E1/0007
Title : Bengal Regulation V of 1812
(Regulation for Sale of Estates for Arrears of Revenue)
Date : 1812
Type : Regulation
Subject : Land and Revenue
Authority : Governor-General in Council
Parent Act : Charter Act of 1793
Scope : Procedure for sale of estates in default of revenue payment
Status : Repealed/Superseded
Notes : Precursor to Bengal Land Revenue Sales Act, 1859

Ref No. : SD-1/E1/0008
Title : Bengal Regulation XI of 1825
(Bengal Alluvion and Diluvion Regulation)
Date : 1825
Type : Regulation
Subject : Land and Revenue
Authority : Governor-General in Council
Scope : Rights regarding alluvial and diluvial land formations
Status : Partially in force (provisions absorbed into later Acts)
Notes : Important for riverine Bangladesh

Ref No. : SD-1/E1/0009
Title : Bengal Regulation III of 1828
(Regulation for Revenue Survey and Assessment)
Date : 1828
Type : Regulation
Subject : Land and Revenue
Authority : Governor-General in Council
Scope : Land survey and revenue assessment procedures
Status : Repealed/Superseded

Ref No. : SD-1/E1/0010
Title : Bengal Regulation IX of 1833
(Regulation regarding Land Tenures and Rent Recovery)
Date : 1833
Type : Regulation
Subject : Land and Revenue
Authority : Governor-General in Council

Scope : Tenant rights, rent recovery procedures
Status : Repealed/Superseded
Notes : Precursor to Bengal Rent Act and Bengal Tenancy Act

A.2: JUDICIAL AND CIVIL ADMINISTRATION REGULATIONS

Ref No. : SD-1/E1/0011
Title : Bengal Regulation III of 1793
(Regulation for the Administration of Civil Justice)

Date : 1793
Type : Regulation
Subject : Civil Law and Justice
Authority : Governor-General in Council
Parent Act : Charter Act of 1793
Scope : Establishment of civil courts, civil procedure
Status : Repealed/Superseded
Notes : Foundation of civil justice administration in Bengal

Ref No. : SD-1/E1/0012
Title : Bengal Regulation IV of 1793
(Regulation for the Administration of Criminal Justice)

Date : 1793
Type : Regulation
Subject : Criminal Law and Justice
Authority : Governor-General in Council
Parent Act : Charter Act of 1793
Scope : Criminal courts, criminal procedure, punishments
Status : Repealed/Superseded
Notes : Foundation of criminal justice in Bengal

Ref No. : SD-1/E1/0013
Title : Bengal Regulation VI of 1793
(Regulation for Police Administration)

Date : 1793
Type : Regulation
Subject : Police and Public Order
Authority : Governor-General in Council
Parent Act : Charter Act of 1793
Scope : Establishment of police, magisterial powers
Status : Repealed/Superseded

Ref No. : SD-1/E1/0014
Title : Bengal Regulation IX of 1793
(Regulation regarding Court Fees and Legal Process)

Date : 1793
Type : Regulation
Subject : Civil Law and Justice
Authority : Governor-General in Council
Scope : Court fees, process serving, legal procedure
Status : Repealed/Superseded

Ref No. : SD-1/E1/0015
Title : Bengal Regulation II of 1806
(Regulation regarding Small Cause Courts)

Date : 1806
Type : Regulation
Subject : Civil Law and Justice
Authority : Governor-General in Council
Scope : Small claims, summary procedure
Status : Repealed/Superseded

Ref No. : SD-1/E1/0016
Title : Bengal Regulation VI of 1813
(Regulation for Limitation of Civil Suits)

Date : 1813
Type : Regulation

Subject : Civil Law and Justice
Authority : Governor-General in Council
Scope : Time limits for filing civil suits
Status : Repealed/Superseded
Notes : Precursor to Indian Limitation Act
Ref No. : SD-1/E1/0017
Title : Bengal Regulation XXVI of 1814
(Regulation regarding Appeals in Civil Cases)

Date : 1814
Type : Regulation
Subject : Civil Law and Justice
Authority : Governor-General in Council
Scope : Appellate procedure in civil cases
Status : Repealed/Superseded
Ref No. : SD-1/E1/0018
Title : Bengal Regulation IX of 1807
(Regulation for Criminal Courts and Procedure)

Date : 1807
Type : Regulation
Subject : Criminal Law and Justice
Authority : Governor-General in Council
Scope : Revised criminal court structure and procedure
Status : Repealed/Superseded

Ref No. : SD-1/E1/0019
Title : Bengal Regulation XIV of 1824
(Regulation regarding Juries and Assessors)

Date : 1824
Type : Regulation
Subject : Criminal Law and Justice
Authority : Governor-General in Council
Scope : Jury system, assessor appointments
Status : Repealed/Superseded

Ref No. : SD-1/E1/0020
Title : Bengal Regulation V of 1831
(Regulation for Abolition of Provincial Courts of Appeal and Circuit)

Date : 1831
Type : Regulation
Subject : Civil Law and Justice / Constitutional and Administrative
Authority : Governor-General in Council
Scope : Restructuring of judicial administration
Status : Repealed/Superseded

A.3: PERSONAL LAW AND FAMILY LAW REGULATIONS

Ref No. : SD-1/E1/0021
Title : Bengal Regulation IV of 1793
(Regulation regarding Hindu and Muhammadan Law)

Date : 1793
Type : Regulation
Subject : Family Law and Personal Law
Authority : Governor-General in Council
Scope : Application of personal law in succession, marriage, religious usages

Status : Partially superseded
Notes : Established the principle of applying personal law to respective communities

Ref No. : SD-1/E1/0022
Title : Bengal Regulation V of 1799
(Regulation regarding Inheritance and Succession)

Date : 1799

Type : Regulation
Subject : Family Law and Personal Law
Authority : Governor-General in Council
Scope : Rules for inheritance among Hindus and Muslims
Status : Superseded by later succession acts
Ref No. : SD-1/E1/0023
Title : Bengal Regulation VII of 1832
(Religion regarding Sati — Abolition of Sutte)

Date : 1829 (Bengal Regulation XVII of 1829)
Type : Regulation
Subject : Criminal Law / Family Law
Authority : Governor-General in Council (Lord Bentinck)
Scope : Prohibition of sati/suttee
Status : Historical — principles absorbed into criminal law
Notes : Landmark social reform regulation

Ref No. : SD-1/E1/0024
Title : Bengal Regulation XV of 1793
(Religion for Administration of Hindu and Muhammadan Endowments)

Date : 1793
Type : Regulation
Subject : Religious and Charitable Endowments
Authority : Governor-General in Council
Scope : Management of religious endowments, waqf, debottar
Status : Superseded by later endowment legislation

A.4: POLICE, PRISON AND PUBLIC ORDER REGULATIONS

Ref No. : SD-1/E1/0025
Title : Bengal Regulation VI of 1810
(Religion for Village Police / Chowkidari System)

Date : 1810
Type : Regulation
Subject : Police and Public Order
Authority : Governor-General in Council
Scope : Village watch and ward, chowkidari system
Status : Superseded
Notes : Foundation of rural policing in Bengal

Ref No. : SD-1/E1/0026
Title : Bengal Regulation XII of 1816
(Religion for Suppression of Dacoity)

Date : 1816
Type : Regulation
Subject : Criminal Law / Police and Public Order
Authority : Governor-General in Council
Scope : Special measures for suppression of dacoity/robbery
Status : Repealed/Superseded

Ref No. : SD-1/E1/0027
Title : Bengal Regulation XIV of 1818
(Religion for Regulation of Prisons)

Date : 1818
Type : Regulation
Subject : Prisons and Correctional Services
Authority : Governor-General in Council
Scope : Prison administration, prisoner treatment
Status : Superseded by later prison legislation

Ref No. : SD-1/E1/0028
Title : Bengal Regulation VII of 1817
(Religion for Suppression of Thuggee and Dacoity)

Date : 1817
Type : Regulation

Subject : Criminal Law / Police and Public Order
Authority : Governor-General in Council
Scope : Measures against organized criminal groups
Status : Repealed/Historical
Ref No. : SD-1/E1/0029
Title : Bengal Regulation III of 1818
(Regulation for State Prisoners — Detention Without Trial)
Date : 1818
Type : Regulation
Subject : Constitutional and Administrative / Criminal Law
Authority : Governor-General in Council
Scope : Preventive detention powers
Status : Repealed
Notes : Bengal State Prisoners Regulation; later replaced by
similar provisions in subsequent legislation

A.5: TRADE, COMMERCE AND MISCELLANEOUS REGULATIONS

Ref No. : SD-1/E1/0030
Title : Bengal Regulation V of 1812
(Regulation regarding Registration of Deeds)
Date : 1812
Type : Regulation
Subject : Registration and Stamps
Authority : Governor-General in Council
Scope : Registration of property deeds and documents
Status : Superseded by Indian Registration Act
Notes : Early regulation on document registration in Bengal
Ref No. : SD-1/E1/0031
Title : Bengal Regulation XII of 1793
(Regulation regarding Distillation and Sale of Spirits)
Date : 1793
Type : Regulation
Subject : Trade, Commerce and Industry / Finance
Authority : Governor-General in Council
Scope : Liquor licensing, excise on spirits
Status : Superseded by later excise legislation
Ref No. : SD-1/E1/0032
Title : Bengal Regulation XIX of 1810
(Regulation regarding Salt Manufacture and Trade)
Date : 1810
Type : Regulation
Subject : Trade, Commerce and Industry
Authority : Governor-General in Council
Scope : Salt monopoly, salt production regulation
Status : Repealed/Historical
Ref No. : SD-1/E1/0033
Title : Bengal Regulation X of 1800
(Regulation regarding Opium Trade)
Date : 1800
Type : Regulation
Subject : Trade, Commerce and Industry
Authority : Governor-General in Council
Scope : Opium cultivation and trade regulation
Status : Repealed/Historical
Ref No. : SD-1/E1/0034
Title : Bengal Regulation XXI of 1795
(Regulation regarding Stamp Duties)
Date : 1795
Type : Regulation
Subject : Finance, Banking and Taxation

Authority : Governor-General in Council
Scope : Stamp duties on legal documents
Status : Superseded by Indian Stamp Act
Ref No. : SD-1/E1/0035
Title : Bengal Regulation V of 1830
(Relation regarding Press and Printing)
Date : 1830
Type : Regulation
Subject : Constitutional and Administrative
Authority : Governor-General in Council
Scope : Regulation of printing presses, press licensing
Status : Repealed
Notes : Early press regulation in Bengal

A.6: POST-1834 SUBORDINATE LEGISLATION (1834-1858)

After the Charter Act of 1833, the Bengal Regulations ceased, and legislative power was centralized. However, subordinate legislation continued through:

Ref No. : SD-1/E1/0036
Title : Rules under Act XI of 1836
(Rules for Revenue Settlement Procedures)

Date : 1836
Type : Rules
Subject : Land and Revenue
Authority : Governor-General in Council
Parent Act : Act XI of 1836
Scope : Revenue settlement procedures in Bengal
Status : Superseded

Ref No. : SD-1/E1/0037
Title : Rules under Act IX of 1840
(Rent Recovery Rules for Bengal)

Date : 1840
Type : Rules
Subject : Land and Revenue
Authority : Governor of Bengal
Parent Act : Act IX of 1840
Scope : Rent recovery from agricultural tenants
Status : Superseded

Ref No. : SD-1/E1/0038
Title : Rules under Act XII of 1841
(Rules for Registration of Deeds in Bengal)

Date : 1841
Type : Rules
Subject : Registration and Stamps
Authority : Government of Bengal
Parent Act : Act XII of 1841
Scope : Detailed procedure for deed registration
Status : Superseded by Registration Act rules

Ref No. : SD-1/E1/0039
Title : Bengal Police Rules under Act XIII of 1856
Date : 1856
Type : Rules
Subject : Police and Public Order
Authority : Government of Bengal
Parent Act : Act XIII of 1856
Scope : Police organization and duties
Status : Superseded by Police Act 1861 rules

Ref No. : SD-1/E1/0040
Title : Rules under Bengal Rent Act (Act X of 1859)
Date : 1859 (bridges to Era 2, enacted just before 1858 transfer)

Type : Rules
Subject : Land and Revenue
Authority : Government of Bengal
Parent Act : Bengal Rent Act, 1859
Scope : Rent assessment and collection procedures
Status : Superseded by Bengal Tenancy Act 1885 rules

Ref No. : SD-1/E1/0041
Title : Notifications under Bengal Civil Courts Regulations
Date : 1840-1858 (various)
Type : Notifications
Subject : Civil Law and Justice
Authority : Government of Bengal / Sadar Diwani Adalat
Scope : Establishment and jurisdiction of civil courts
Status : Superseded

Ref No. : SD-1/E1/0042
Title : Circular Orders of the Sadar Diwani Adalat (Civil)
Date : Various (1800-1858)
Type : Circulars/Orders
Subject : Civil Law and Justice
Authority : Sadar Diwani Adalat (Chief Civil Court)
Scope : Procedural directions to subordinate civil courts
Status : Historical
Notes : Important source for understanding early civil procedure

Ref No. : SD-1/E1/0043
Title : Circular Orders of the Sadar Nizamat Adalat (Criminal)
Date : Various (1800-1858)
Type : Circulars/Orders
Subject : Criminal Law and Justice
Authority : Sadar Nizamat Adalat (Chief Criminal Court)
Scope : Procedural directions to subordinate criminal courts
Status : Historical
Notes : Important source for understanding early criminal procedure

Ref No. : SD-1/E1/0044
Title : Revenue Board Circular Orders
Date : Various (1793-1858)
Type : Circulars/Orders
Subject : Land and Revenue
Authority : Board of Revenue, Bengal
Scope : Revenue administration directions to collectors
Status : Historical
Notes : Extensive body of administrative directions

Ref No. : SD-1/E1/0045
Title : Rules under Act VI of 1844

(Slavery Abolition Rules for Bengal)

Date : 1844
Type : Rules
Subject : Criminal Law / Constitutional and Administrative
Authority : Governor-General in Council
Parent Act : Indian Slavery Act, 1843 (Act V of 1843)
Scope : Implementation of slavery abolition
Status : Historical — purpose fulfilled

SUMMARY — ERA 1 (1799-1858)

Total Entries in this Volume : 45
 - Bengal Regulations : 35
 - Rules under Post-1834 Acts : 5
 - Notifications : 1
 - Circular Orders : 3
 - Other : 1

Subject Distribution:

- Land and Revenue : 12
- Civil Law and Justice : 8
- Criminal Law and Justice : 6
- Police and Public Order : 4
- Family Law and Personal Law : 4
- Registration and Stamps : 3
- Trade, Commerce and Industry: 3
- Constitutional & Admin : 2
- Finance and Taxation : 1
- Prisons : 1
- Religious Endowments : 1

Status Distribution:

- Repealed/Superseded : 38
- Historical : 5
- Partially in Force : 2

NOTE: This inventory is not exhaustive. The Bengal Regulations alone numbered over 700 individual regulations between 1793 and 1834. This inventory focuses on the most significant subordinate legislations. A complete enumeration requires access to the full Bengal Code and Gazette archives.

END OF ERA 1 INVENTORY

MASTER INVENTORY — ERA 2 (1858-1947)

MASTER INVENTORY OF SUBORDINATE LEGISLATIONS — ERA 2 (1858-1947)

BRITISH CROWN RULE PERIOD

BENGAL PROVINCE / EAST BENGAL (PRESENT-DAY BANGLADESH)

Package SD-1 | Code of Delegated/Subordinate Legislation of Bangladesh

NOTE: Each entry is assigned a unique reference number in the format:

SD-1/E2/XXXX (SD-1 = Package, E2 = Era 2, XXXX = Serial Number)

SECTION A: CRIMINAL LAW AND JUSTICE

A.1: Rules under the Indian Penal Code, 1860 (Act XLV of 1860)

Ref No. : SD-1/E2/0001
Title : Notifications under Section 294A IPC
(Lottery Notifications for Bengal)
Date : Various (1870s onwards)
Type : Notifications
Subject : Criminal Law and Justice
Authority : Government of Bengal
Parent Act : Indian Penal Code, 1860, Section 294A
Scope : Authorization/prohibition of lotteries
Status : Superseded by later notifications

A.2: Rules under the Code of Criminal Procedure, 1898 (Act V of 1898)

Ref No. : SD-1/E2/0002
Title : Bengal Criminal Rules and Orders (Practice and Procedure)
Date : 1898 (amended periodically)
Type : Rules
Subject : Criminal Law and Justice
Authority : High Court of Calcutta / Government of Bengal
Parent Act : Code of Criminal Procedure, 1898
Scope : Detailed procedural rules for criminal courts in Bengal
Status : Partially in force (as adapted for Bangladesh)
Notes : Comprehensive procedural manual for criminal courts

Ref No. : SD-1/E2/0003
Title : High Court Criminal Circulars and Orders (Bengal)
Date : Various (1862-1947)
Type : Circulars/Orders
Subject : Criminal Law and Justice
Authority : High Court of Calcutta
Parent Act : Code of Criminal Procedure, 1898
Scope : Directions to criminal courts on procedure and practice
Status : Historical / Partially superseded

Ref No. : SD-1/E2/0004
Title : Rules for the Grant of Probation under Section 562 CrPC
Date : 1900 (amended)
Type : Rules
Subject : Criminal Law and Justice
Authority : Government of Bengal
Parent Act : Code of Criminal Procedure, 1898
Scope : Probation procedure and conditions
Status : Superseded

Ref No. : SD-1/E2/0005
Title : Rules regarding Identification of Prisoners
Date : 1920
Type : Rules
Subject : Criminal Law and Justice
Authority : Government of Bengal
Parent Act : Identification of Prisoners Act, 1920

Scope : Fingerprinting, photographing of prisoners
 Status : Partially in force
 Ref No. : SD-1/E2/0006
 Title : Rules for Criminal Courts regarding Record Keeping
 Date : 1899 (amended periodically)
 Type : Rules
 Subject : Criminal Law and Justice
 Authority : High Court of Calcutta
 Parent Act : Code of Criminal Procedure, 1898
 Scope : Record maintenance, filing, destruction schedules
 Status : Partially in force

A.3: Rules under Police Legislation

Ref No. : SD-1/E2/0007
 Title : Police Regulations of Bengal (PRB)
 Date : 1861 (comprehensively revised 1910, 1943)
 Type : Regulations
 Subject : Police and Public Order
 Authority : Government of Bengal
 Parent Act : Police Act, 1861 (Act V of 1861)
 Scope : Comprehensive police administration manual — organization, discipline, duties, investigation procedures, record keeping
 Status : Partially in force in Bangladesh
 Notes : One of the most significant subordinate legislation sets; extensive volumes covering all aspects of policing

Ref No. : SD-1/E2/0008
 Title : Bengal Village Self-Government (Police) Rules
 Date : 1919
 Type : Rules
 Subject : Police and Public Order
 Authority : Government of Bengal
 Parent Act : Bengal Village Self-Government Act, 1919
 Scope : Village-level policing, chowkidari system
 Status : Superseded

Ref No. : SD-1/E2/0009
 Title : Bengal Police (Incitement to Disaffection) Rules
 Date : 1922
 Type : Rules
 Subject : Police and Public Order
 Authority : Government of Bengal
 Parent Act : Police (Incitement to Disaffection) Act, 1922
 Scope : Prevention of sedition within police force
 Status : Repealed/Obsolete

Ref No. : SD-1/E2/0010
 Title : Arms Rules, Bengal
 Date : 1878 (revised 1924, 1937)
 Type : Rules
 Subject : Police and Public Order
 Authority : Government of Bengal
 Parent Act : Indian Arms Act, 1878 / Arms Act, 1878
 Scope : Licensing, possession, manufacture of arms and ammunition
 Status : Superseded by later Arms Rules

SECTION B: CIVIL LAW AND JUSTICE

Ref No. : SD-1/E2/0011
 Title : Bengal Civil Rules and Orders (Practice and Procedure)
 Date : 1908 (amended periodically)
 Type : Rules
 Subject : Civil Law and Justice
 Authority : High Court of Calcutta / Government of Bengal

Parent Act : Code of Civil Procedure, 1908 (Act V of 1908)
Scope : Detailed procedural rules for civil courts in Bengal
Status : Partially in force (as adapted for Bangladesh)
Notes : Comprehensive procedural rules for all civil litigation

Ref No. : SD-1/E2/0012
Title : High Court Civil Circulars and Orders (Bengal)
Date : Various (1862-1947)
Type : Circulars/Orders
Subject : Civil Law and Justice
Authority : High Court of Calcutta
Parent Act : Code of Civil Procedure, 1908
Scope : Directions to civil courts on procedure and practice
Status : Historical / Partially superseded

Ref No. : SD-1/E2/0013
Title : Rules under the Bengal Civil Courts Act, 1887
Date : 1887 (amended)
Type : Rules
Subject : Civil Law and Justice
Authority : Government of Bengal / High Court
Parent Act : Bengal Civil Courts Act, 1887 (Act XII of 1887)
Scope : Establishment, jurisdiction, and procedure of civil courts
Status : Partially in force

Ref No. : SD-1/E2/0014
Title : Small Cause Courts Rules (Bengal)
Date : 1887 (amended)
Type : Rules
Subject : Civil Law and Justice
Authority : Government of Bengal
Parent Act : Provincial Small Cause Courts Act, 1887
Scope : Procedure for small cause courts
Status : Partially in force

Ref No. : SD-1/E2/0015
Title : Bengal Money-Lenders Rules
Date : 1940
Type : Rules
Subject : Civil Law and Justice / Finance
Authority : Government of Bengal
Parent Act : Bengal Money-Lenders Act, 1940
Scope : Registration and regulation of money-lenders
Status : Partially in force

Ref No. : SD-1/E2/0016
Title : Arbitration Rules (Bengal)
Date : 1940
Type : Rules
Subject : Civil Law and Justice
Authority : Government of Bengal / High Court
Parent Act : Arbitration Act, 1940 (Act X of 1940)
Scope : Arbitration procedure, appointment of arbitrators
Status : Superseded by later arbitration rules

Ref No. : SD-1/E2/0017
Title : Court Fees Rules (Bengal)
Date : 1870 (amended periodically)
Type : Rules
Subject : Civil Law and Justice
Authority : Government of Bengal
Parent Act : Court Fees Act, 1870 (Act VII of 1870)
Scope : Court fee schedules, exemptions, refund procedures
Status : Partially in force (as amended)

Ref No. : SD-1/E2/0018
Title : Suits Valuation Rules (Bengal)

Date : 1887
 Type : Rules
 Subject : Civil Law and Justice
 Authority : Government of Bengal
 Parent Act : Suits Valuation Act, 1887 (Act VII of 1887)
 Scope : Valuation of suits for jurisdictional purposes
 Status : Partially in force
 Ref No. : SD-1/E2/0019
 Title : Legal Practitioners Rules (Bengal)
 Date : 1879 (amended)
 Type : Rules
 Subject : Civil Law and Justice
 Authority : High Court / Government of Bengal
 Parent Act : Legal Practitioners Act, 1879
 Scope : Enrollment, discipline, practice rights of lawyers
 Status : Superseded by Bar Council rules

SECTION C: LAND AND REVENUE

Ref No. : SD-1/E2/0020
 Title : Bengal Tenancy Rules
 Date : 1885 (comprehensively revised multiple times)
 Type : Rules
 Subject : Land and Revenue
 Authority : Government of Bengal
 Parent Act : Bengal Tenancy Act, 1885 (Act VIII of 1885)
 Scope : Tenant rights, rent assessment, rent recovery, occupancy rights, under-raiyat rights, transfer restrictions
 Status : Superseded by SAT Act rules, but historically significant
 Notes : One of the most important sets of rules for Bengal land law

Ref No. : SD-1/E2/0021
 Title : Bengal Land Revenue Rules
 Date : Various (1859 onwards)
 Type : Rules
 Subject : Land and Revenue
 Authority : Government of Bengal / Board of Revenue
 Parent Act : Bengal Land Revenue Sales Act, 1859 (Act XI of 1859)
 Scope : Revenue assessment, collection, sale for arrears
 Status : Superseded

Ref No. : SD-1/E2/0022
 Title : Survey and Settlement Rules (Bengal)
 Date : 1875 (revised 1908, 1920)
 Type : Rules
 Subject : Land and Revenue
 Authority : Government of Bengal
 Parent Act : Bengal Survey Act, 1875
 Scope : Land survey procedure, record of rights preparation, settlement operations
 Status : Partially in force
 Notes : Critical for land administration in Bangladesh

Ref No. : SD-1/E2/0023
 Title : Bengal Cess Rules
 Date : 1880 (amended)
 Type : Rules
 Subject : Land and Revenue / Finance
 Authority : Government of Bengal
 Parent Act : Bengal Cess Act, 1880 (Act IX of 1880)
 Scope : Local cess assessment and collection on land
 Status : Superseded

Ref No. : SD-1/E2/0024
 Title : Bengal Public Demands Recovery Rules

Date : 1913 (amended)
Type : Rules
Subject : Land and Revenue / Finance
Authority : Government of Bengal
Parent Act : Bengal Public Demands Recovery Act, 1913
Scope : Recovery of public dues including revenue arrears
Status : Partially in force

Ref No. : SD-1/E2/0025
Title : Bengal Agricultural Debtors Rules
Date : 1936
Type : Rules
Subject : Land and Revenue
Authority : Government of Bengal
Parent Act : Bengal Agricultural Debtors Act, 1936
Scope : Debt settlement boards, agricultural debt relief
Status : Partially in force

Ref No. : SD-1/E2/0026
Title : Bengal Embankment Rules
Date : 1882 (amended)
Type : Rules
Subject : Land and Revenue / Agriculture
Authority : Government of Bengal
Parent Act : Bengal Embankment Act, 1882
Scope : Flood embankment construction and maintenance
Status : Partially in force
Notes : Important for flood-prone Bangladesh

Ref No. : SD-1/E2/0027
Title : Waste Land Rules (Bengal)
Date : 1838 (revised periodically)
Type : Rules
Subject : Land and Revenue
Authority : Government of Bengal / Government of India
Scope : Grant and management of waste lands
Status : Obsolete/Historical

Ref No. : SD-1/E2/0028
Title : Bengal Partition Rules (Land)
Date : 1897
Type : Rules
Subject : Land and Revenue
Authority : Government of Bengal
Parent Act : Bengal Partition Act, 1897
Scope : Procedure for partition of jointly owned land
Status : Partially in force

SECTION D: LOCAL GOVERNMENT AND MUNICIPAL AFFAIRS

Ref No. : SD-1/E2/0029
Title : Bengal Municipal Rules
Date : 1884 (revised under 1932 Act)
Type : Rules
Subject : Local Government and Municipal Affairs
Authority : Government of Bengal
Parent Act : Bengal Municipal Act, 1884 / Bengal Municipal Act, 1932
Scope : Municipal administration, elections, finance, services
Status : Superseded

Ref No. : SD-1/E2/0030
Title : Municipal By-Laws (Dhaka Municipality)
Date : Various (1884 onwards)
Type : By-Laws
Subject : Local Government and Municipal Affairs
Authority : Dhaka Municipality

Parent Act	: Bengal Municipal Act, 1884 / 1932
Scope	: Building regulations, sanitation, markets, licensing
Status	: Superseded
Ref No.	: SD-1/E2/0031
Title	: Municipal By-Laws (Chittagong Municipality)
Date	: Various (1884 onwards)
Type	: By-Laws
Subject	: Local Government and Municipal Affairs
Authority	: Chittagong Municipality
Parent Act	: Bengal Municipal Act, 1884 / 1932
Scope	: Building regulations, sanitation, markets, licensing
Status	: Superseded
Ref No.	: SD-1/E2/0032
Title	: Bengal Union Board Rules
Date	: 1919 (amended)
Type	: Rules
Subject	: Local Government and Municipal Affairs
Authority	: Government of Bengal
Parent Act	: Bengal Village Self-Government Act, 1919
Scope	: Union board formation, elections, functions, finance
Status	: Superseded
Notes	: Foundation of local government in rural Bengal
Ref No.	: SD-1/E2/0033
Title	: Bengal District Board Rules
Date	: 1885 (revised under subsequent Acts)
Type	: Rules
Subject	: Local Government and Municipal Affairs
Authority	: Government of Bengal
Parent Act	: Bengal Local Self-Government Act, 1885
Scope	: District board elections, functions, finance
Status	: Superseded
Ref No.	: SD-1/E2/0034
Title	: Bengal Panchayat Rules
Date	: 1920
Type	: Rules
Subject	: Local Government and Municipal Affairs
Authority	: Government of Bengal
Parent Act	: Bengal Panchayat Act, 1920
Scope	: Village panchayat formation and functions
Status	: Superseded

Ref No.	: SD-1/E2/0035
Title	: Bengal Education Code / Bengal Educational Rules
Date	: 1884 (revised periodically up to 1947)
Type	: Rules/Code
Subject	: Education
Authority	: Government of Bengal / Director of Public Instruction
Parent Act	: Various education legislation
Scope	: Comprehensive rules for all levels of education — primary, secondary, collegiate; school recognition, teacher qualifications, grants-in-aid, examinations
Status	: Superseded but historically significant
Notes	: Massive body of rules governing education in Bengal
Ref No.	: SD-1/E2/0036
Title	: Bengal Primary Education Rules
Date	: 1919 (amended)
Type	: Rules
Subject	: Education
Authority	: Government of Bengal

Parent Act : Bengal Primary Education Act, 1919 (Bengal Act II of 1919)
 Scope : Compulsory primary education, school establishment
 Status : Superseded
 Ref No. : SD-1/E2/0037
 Title : Dacca University Regulations and Statutes
 Date : 1921 (amended periodically)
 Type : Regulations/Statutes
 Subject : Education
 Authority : Dacca University Senate/Syndicate
 Parent Act : Dacca University Act, 1920 (Act XIII of 1920)
 Scope : University governance, degrees, examinations, faculties,
 student discipline, academic requirements
 Status : Superseded by later university ordinances
 Notes : Historically significant for Bangladesh's premier university
 Ref No. : SD-1/E2/0038
 Title : Calcutta University Regulations (applicable to Bengal)
 Date : Various (1857 onwards)
 Type : Regulations
 Subject : Education
 Authority : Calcutta University Senate
 Parent Act : Calcutta University Acts, 1857/1904
 Scope : Affiliated colleges in Bengal, examination rules
 Status : Historical
 Ref No. : SD-1/E2/0039
 Title : Bengal Grants-in-Aid Rules (Education)
 Date : 1880 (revised periodically)
 Type : Rules
 Subject : Education
 Authority : Government of Bengal
 Scope : Grant-in-aid to educational institutions, conditions
 Status : Superseded

SECTION F: HEALTH AND SANITATION

Ref No. : SD-1/E2/0040
 Title : Bengal Public Health Rules
 Date : 1919 (amended)
 Type : Rules
 Subject : Health and Sanitation
 Authority : Government of Bengal
 Parent Act : Bengal Public Health Act, 1919
 Scope : Public health administration, disease control, sanitation
 Status : Partially in force
 Ref No. : SD-1/E2/0041
 Title : Vaccination Rules (Bengal)
 Date : 1880 (amended periodically)
 Type : Rules
 Subject : Health and Sanitation
 Authority : Government of Bengal
 Parent Act : Vaccination Act, 1880
 Scope : Compulsory vaccination, procedure, penalties
 Status : Superseded by later public health rules
 Ref No. : SD-1/E2/0042
 Title : Bengal Epidemic Disease Rules
 Date : 1897 (amended)
 Type : Rules
 Subject : Health and Sanitation
 Authority : Government of Bengal
 Parent Act : Epidemic Diseases Act, 1897
 Scope : Measures for prevention and control of epidemics
 Status : In force (used during COVID-19 pandemic)

Notes : Remarkably, still actively used in Bangladesh

Ref No. : SD-1/E2/0043
Title : Bengal Medical Registration Rules
Date : 1914
Type : Rules
Subject : Health and Sanitation
Authority : Government of Bengal
Parent Act : Bengal Medical Act, 1914
Scope : Registration and regulation of medical practitioners
Status : Superseded

Ref No. : SD-1/E2/0044
Title : Poison Rules (Bengal)
Date : 1919 (amended)
Type : Rules
Subject : Health and Sanitation
Authority : Government of Bengal
Parent Act : Poisons Act, 1919
Scope : Sale, storage, and transport of poisons
Status : Partially in force

Ref No. : SD-1/E2/0045
Title : Bengal Drugs Rules
Date : 1940 (amended)
Type : Rules
Subject : Health and Sanitation
Authority : Government of Bengal
Parent Act : Drugs Act, 1940
Scope : Drug manufacture, sale, quality control
Status : Partially in force

SECTION G: LABOUR AND EMPLOYMENT

Ref No. : SD-1/E2/0046
Title : Bengal Factories Rules
Date : 1881 (revised under 1911, 1934 Acts)
Type : Rules
Subject : Labour and Employment
Authority : Government of Bengal
Parent Act : Indian Factories Act, 1881/1911/1934
Scope : Factory safety, working hours, child labour, inspections
Status : Superseded by later factory rules

Ref No. : SD-1/E2/0047
Title : Workmen's Compensation Rules (Bengal)
Date : 1924
Type : Rules
Subject : Labour and Employment
Authority : Government of Bengal
Parent Act : Workmen's Compensation Act, 1923
Scope : Compensation for workplace injuries, claim procedure
Status : Partially in force

Ref No. : SD-1/E2/0048
Title : Bengal Trade Unions Regulations
Date : 1927
Type : Regulations
Subject : Labour and Employment
Authority : Government of Bengal
Parent Act : Trade Unions Act, 1926
Scope : Registration and regulation of trade unions
Status : Superseded

Ref No. : SD-1/E2/0049
Title : Payment of Wages Rules (Bengal)
Date : 1937

Type : Rules
Subject : Labour and Employment
Authority : Government of Bengal
Parent Act : Payment of Wages Act, 1936
Scope : Wage payment procedures, deductions, claims
Status : Partially in force

Ref No. : SD-1/E2/0050
Title : Bengal Maternity Benefit Rules
Date : 1941
Type : Rules
Subject : Labour and Employment
Authority : Government of Bengal
Parent Act : Bengal Maternity Benefit Act, 1939
Scope : Maternity leave, benefits for female workers
Status : Superseded by later maternity benefit rules

Ref No. : SD-1/E2/0051
Title : Bengal Shops and Establishments Rules
Date : 1940
Type : Rules
Subject : Labour and Employment
Authority : Government of Bengal
Parent Act : Bengal Shops and Establishments Act, 1940
Scope : Working hours, holidays, conditions in shops
Status : Superseded

SECTION H: TRADE, COMMERCE AND INDUSTRY

Ref No. : SD-1/E2/0052
Title : Indian Companies Rules (Bengal application)
Date : 1914 (amended under 1913 Act)
Type : Rules
Subject : Trade, Commerce and Industry
Authority : Government of India / Government of Bengal
Parent Act : Indian Companies Act, 1913
Scope : Company registration, operation, winding up
Status : Superseded by later Companies Rules

Ref No. : SD-1/E2/0053
Title : Bengal Cooperative Societies Rules
Date : 1912 (revised under 1940 Act)
Type : Rules
Subject : Trade, Commerce and Industry
Authority : Government of Bengal
Parent Act : Cooperative Societies Act, 1912 / Bengal Co-operative Societies Act, 1940
Scope : Registration, operation, and audit of cooperatives
Status : Superseded

Ref No. : SD-1/E2/0054
Title : Bengal Jute Regulation Rules
Date : 1940
Type : Rules
Subject : Trade, Commerce and Industry / Agriculture
Authority : Government of Bengal
Parent Act : Bengal Jute Regulation Act
Scope : Jute cultivation and trade regulation
Status : Superseded
Notes : Jute was the primary export commodity of East Bengal

Ref No. : SD-1/E2/0055
Title : Bengal Hoarding and Profiteering Prevention Rules
Date : 1943
Type : Rules
Subject : Trade, Commerce and Industry

Authority : Government of Bengal
Parent Act : Hoarding and Profiteering Prevention Ordinance, 1943
Scope : Wartime price control, anti-hoarding measures
Status : Repealed/Obsolete
Notes : Emergency wartime regulation during Bengal Famine of 1943

SECTION I: FINANCE, BANKING AND TAXATION

Ref No. : SD-1/E2/0056
Title : Bengal Income Tax Rules (Provincial)
Date : 1922 (amended)
Type : Rules
Subject : Finance, Banking and Taxation
Authority : Government of Bengal / Government of India
Parent Act : Indian Income Tax Act, 1922
Scope : Income tax assessment, collection, exemptions
Status : Superseded

Ref No. : SD-1/E2/0057
Title : Bengal Agricultural Income Tax Rules
Date : 1944
Type : Rules
Subject : Finance, Banking and Taxation
Authority : Government of Bengal
Parent Act : Bengal Agricultural Income Tax Act, 1944
Scope : Tax on agricultural income, assessment procedure
Status : Partially in force

Ref No. : SD-1/E2/0058
Title : Bengal Excise Rules
Date : 1909 (amended periodically)
Type : Rules
Subject : Finance, Banking and Taxation
Authority : Government of Bengal
Parent Act : Bengal Excise Act, 1909
Scope : Liquor licensing, manufacture, sale, transport of alcohol
Status : Partially in force

Ref No. : SD-1/E2/0059
Title : Stamp Rules (Bengal)
Date : 1899 (amended)
Type : Rules
Subject : Finance, Banking and Taxation / Registration
Authority : Government of Bengal
Parent Act : Indian Stamp Act, 1899 (Act II of 1899)
Scope : Stamp duties, procedures, adjudication, penalties
Status : Partially in force

Ref No. : SD-1/E2/0060
Title : Bengal Amusements Tax Rules
Date : 1922
Type : Rules
Subject : Finance, Banking and Taxation
Authority : Government of Bengal
Parent Act : Bengal Amusements Tax Act, 1922
Scope : Tax on entertainment, cinema, performances
Status : Superseded

SECTION J: REGISTRATION

Ref No. : SD-1/E2/0061
Title : Bengal Registration Rules
Date : 1908 (amended)
Type : Rules
Subject : Registration and Stamps
Authority : Government of Bengal

Parent Act : Indian Registration Act, 1908 (Act XVI of 1908)
 Scope : Registration of documents, deeds, powers of attorney; fees, procedure, office management
 Status : Partially in force in Bangladesh
 Notes : Important for property transactions
 Ref No. : SD-1/E2/0062
 Title : Bengal Births and Deaths Registration Rules
 Date : 1886 (amended)
 Type : Rules
 Subject : Registration
 Authority : Government of Bengal
 Parent Act : Bengal Birth and Death Registration Act, 1886
 Scope : Compulsory registration of births and deaths
 Status : Superseded by later registration rules
 Ref No. : SD-1/E2/0063
 Title : Bengal Marriage Registration Rules
 Date : 1876
 Type : Rules
 Subject : Registration / Family Law
 Authority : Government of Bengal
 Parent Act : Special Marriage Act, 1872 / other marriage laws
 Scope : Procedure for marriage registration
 Status : Partially in force

SECTION K: TRANSPORT AND COMMUNICATION

Ref No. : SD-1/E2/0064
 Title : Bengal Motor Vehicles Rules
 Date : 1940
 Type : Rules
 Subject : Transport and Communication
 Authority : Government of Bengal
 Parent Act : Indian Motor Vehicles Act, 1939
 Scope : Vehicle registration, licensing, road safety, permits
 Status : Superseded by later motor vehicles rules
 Ref No. : SD-1/E2/0065
 Title : Bengal Inland Steam Vessels Rules
 Date : 1917
 Type : Rules
 Subject : Transport and Communication
 Authority : Government of Bengal
 Parent Act : Inland Steam Vessels Act, 1917
 Scope : Registration and safety of inland water vessels
 Status : Partially in force
 Notes : Important for riverine transport in Bangladesh
 Ref No. : SD-1/E2/0066
 Title : Bengal Port Rules (Chittagong, Narayanganj)
 Date : Various (1908 onwards)
 Type : Rules
 Subject : Transport and Communication
 Authority : Government of Bengal
 Parent Act : Indian Ports Act, 1908
 Scope : Port operations, shipping regulation, customs
 Status : Superseded by later port rules
 Ref No. : SD-1/E2/0067
 Title : Eastern Bengal Railway Rules
 Date : Various (1890 onwards)
 Type : Rules
 Subject : Transport and Communication
 Authority : Government of India
 Parent Act : Indian Railways Act, 1890

Scope : Railway operations in East Bengal
Status : Superseded

SECTION L: FORESTS AND ENVIRONMENT

Ref No. : SD-1/E2/0068
Title : Bengal Forest Rules
Date : 1927 (amended periodically)
Type : Rules
Subject : Forests and Environment
Authority : Government of Bengal
Parent Act : Indian Forest Act, 1927 (Act XVI of 1927)
Scope : Reserved forests, protected forests, timber transit,
forest produce, penalties
Status : Partially in force in Bangladesh
Notes : Governs the Sundarbans and other forest areas

Ref No. : SD-1/E2/0069
Title : Bengal Private Forests Rules
Date : 1946
Type : Rules
Subject : Forests and Environment
Authority : Government of Bengal
Parent Act : Bengal Private Forests Act, 1946
Scope : Regulation of private forests, conservation
Status : Partially in force

Ref No. : SD-1/E2/0070
Title : Fisheries Rules (Bengal)
Date : 1889 (amended)
Type : Rules
Subject : Agriculture, Fisheries and Livestock
Authority : Government of Bengal
Parent Act : Bengal Fishery Act, 1889
Scope : Fishing rights, fish conservation, licensing
Status : Partially in force

SECTION M: AGRICULTURE

Ref No. : SD-1/E2/0071
Title : Bengal Agricultural Pests and Diseases Rules
Date : 1914
Type : Rules
Subject : Agriculture, Fisheries and Livestock
Authority : Government of Bengal
Parent Act : Destructive Insects and Pests Act, 1914
Scope : Control of agricultural pests, quarantine measures
Status : Partially in force

Ref No. : SD-1/E2/0072
Title : Bengal Cattle Trespass Rules
Date : 1871
Type : Rules
Subject : Agriculture, Fisheries and Livestock
Authority : Government of Bengal
Parent Act : Cattle Trespass Act, 1871
Scope : Impounding of stray cattle, fines, damage recovery
Status : Partially in force

SECTION N: PRISONS AND CORRECTIONAL SERVICES

Ref No. : SD-1/E2/0073
Title : Bengal Jail Code / Bengal Prison Rules
Date : 1894 (comprehensively revised 1920, 1937)
Type : Rules/Code

Subject : Prisons and Correctional Services
Authority : Government of Bengal
Parent Act : Prisons Act, 1894 (Act IX of 1894)
Scope : Comprehensive prison administration — classification of prisoners, discipline, labor, diet, health, visits, remission, release

Status : Partially in force in Bangladesh
Notes : Extensive manual governing all aspects of prison admin

Ref No. : SD-1/E2/0074
Title : Bengal Prisoners Rules (Transfer)
Date : 1909
Type : Rules
Subject : Prisons and Correctional Services
Authority : Government of Bengal / Government of India
Parent Act : Prisoners Act, 1900
Scope : Transfer of prisoners between prisons
Status : Partially in force

Ref No. : SD-1/E2/0075
Title : Bengal Reformatory Schools Rules
Date : 1897 (amended)
Type : Rules
Subject : Prisons and Correctional Services
Authority : Government of Bengal
Parent Act : Reformatory Schools Act, 1897
Scope : Juvenile detention, reformation, education
Status : Superseded

SECTION O: RELIGIOUS AND CHARITABLE ENDOWMENTS

Ref No. : SD-1/E2/0076
Title : Bengal Waqf Rules
Date : 1934
Type : Rules
Subject : Religious and Charitable Endowments
Authority : Government of Bengal
Parent Act : Bengal Wakf Act, 1934
Scope : Registration, administration, and supervision of waqf properties

Status : Superseded by later waqf rules
Notes : Governs Islamic endowments

Ref No. : SD-1/E2/0077
Title : Bengal Hindu Religious Endowments Rules
Date : 1939
Type : Rules
Subject : Religious and Charitable Endowments
Authority : Government of Bengal
Parent Act : Bengal Hindu Religious Endowments Act, 1939
Scope : Administration of Hindu temples and endowments
Status : Partially in force

Ref No. : SD-1/E2/0078
Title : Charitable Endowments Rules (Bengal)
Date : 1890 (amended)
Type : Rules
Subject : Religious and Charitable Endowments
Authority : Government of Bengal
Parent Act : Charitable Endowments Act, 1890
Scope : Management and vesting of charitable endowments
Status : Partially in force

SECTION P: CONSTITUTIONAL AND ADMINISTRATIVE

Ref No. : SD-1/E2/0079
 Title : Bengal Government Service Rules
 Date : Various (1860 onwards, revised periodically)
 Type : Rules
 Subject : Constitutional and Administrative Law
 Authority : Government of Bengal / Government of India
 Parent Act : Various service legislation
 Scope : Civil service recruitment, conditions, discipline, pensions, leave
 Status : Superseded by Pakistan/Bangladesh service rules
 Notes : Foundation of public service rules

Ref No. : SD-1/E2/0080
 Title : Bengal Official Secrets Rules
 Date : 1923
 Type : Rules
 Subject : Constitutional and Administrative Law
 Authority : Government of Bengal / Government of India
 Parent Act : Official Secrets Act, 1923
 Scope : Classification and protection of official information
 Status : Partially in force

Ref No. : SD-1/E2/0081
 Title : Defence of India Rules (Bengal application)
 Date : 1939 (World War II emergency)
 Type : Rules
 Subject : Constitutional and Administrative / Military
 Authority : Government of India / Government of Bengal
 Parent Act : Defence of India Act, 1939
 Scope : Emergency wartime powers, detention, censorship, requisition of property, movement restrictions
 Status : Repealed (emergency legislation)
 Notes : Extensive wartime regulations affecting Bengal

Ref No. : SD-1/E2/0082
 Title : Bengal Emergency Powers Rules
 Date : 1932
 Type : Rules
 Subject : Constitutional and Administrative
 Authority : Government of Bengal
 Parent Act : Bengal Emergency Powers Act
 Scope : Special powers during civil unrest
 Status : Repealed

Ref No. : SD-1/E2/0083
 Title : Bengal Special Powers Rules
 Date : 1932 (amended)
 Type : Rules
 Subject : Constitutional and Administrative
 Authority : Government of Bengal
 Parent Act : Bengal Criminal Law Amendment Act, 1932
 Scope : Special powers for dealing with political movements
 Status : Partially superseded

SECTION Q: MISCELLANEOUS

Ref No. : SD-1/E2/0084
 Title : Bengal Boiler Rules
 Date : 1923
 Type : Rules
 Subject : Trade, Commerce and Industry
 Authority : Government of Bengal
 Parent Act : Indian Boilers Act, 1923
 Scope : Boiler registration, inspection, safety standards
 Status : Partially in force

Ref No. : SD-1/E2/0085
 Title : Bengal Electricity Rules
 Date : 1910 (revised 1937)
 Type : Rules
 Subject : Trade, Commerce and Industry
 Authority : Government of Bengal
 Parent Act : Indian Electricity Act, 1910
 Scope : Electricity supply, licensing, safety, tariffs
 Status : Superseded by later electricity rules

Ref No. : SD-1/E2/0086
 Title : Bengal Cinemas (Regulation) Rules
 Date : 1936
 Type : Rules
 Subject : Miscellaneous
 Authority : Government of Bengal
 Parent Act : Bengal Cinemas (Regulation) Act, 1936
 Scope : Cinema licensing, censorship, safety regulations
 Status : Superseded

Ref No. : SD-1/E2/0087
 Title : Treasure Trove Rules (Bengal)
 Date : 1878
 Type : Rules
 Subject : Miscellaneous
 Authority : Government of Bengal
 Parent Act : Indian Treasure Trove Act, 1878
 Scope : Reporting and disposal of found treasure
 Status : Partially in force

Ref No. : SD-1/E2/0088
 Title : Bengal Explosive Rules
 Date : 1884 (amended)
 Type : Rules
 Subject : Police and Public Order
 Authority : Government of Bengal / Government of India
 Parent Act : Indian Explosives Act, 1884
 Scope : Manufacture, storage, transport of explosives
 Status : Partially in force

Ref No. : SD-1/E2/0089
 Title : Bengal Petroleum Rules
 Date : 1934
 Type : Rules
 Subject : Trade, Commerce and Industry
 Authority : Government of Bengal
 Parent Act : Petroleum Act, 1934
 Scope : Storage, transport, and sale of petroleum products
 Status : Partially in force

Ref No. : SD-1/E2/0090
 Title : Sarais (Inns) Rules — Bengal
 Date : 1867
 Type : Rules
 Subject : Miscellaneous
 Authority : Government of Bengal
 Parent Act : Sarais Act, 1867
 Scope : Registration and regulation of inns/rest houses
 Status : Partially in force

SUMMARY — ERA 2 (1858-1947)

Total Entries in this Volume : 90

By Type:

- Rules : 72

- Regulations : 5
- By-Laws : 3
- Circulars/Orders : 3
- Others (Code/Statutes) : 7

By Subject:

- Criminal Law and Justice : 10
- Civil Law and Justice : 12
- Land and Revenue : 10
- Local Government : 6
- Education : 5
- Health and Sanitation : 6
- Labour and Employment : 6
- Trade, Commerce, Industry : 7
- Finance and Taxation : 5
- Transport and Communication : 4
- Forests and Environment : 3
- Agriculture and Fisheries : 2
- Police and Public Order : 4
- Prisons : 3
- Religious Endowments : 3
- Registration : 3
- Constitutional & Admin : 5
- Miscellaneous : 4

By Status:

- Partially in force : 32
- Superseded : 38
- Repealed/Obsolete : 12
- Historical : 8

NOTE: This is a representative inventory. The actual volume of subordinate legislation from 1858-1947 is estimated to be in the thousands. Complete enumeration requires systematic examination of every issue of the Bengal Gazette and related official publications from this 89-year period.

END OF ERA 2 INVENTORY

MASTER INVENTORY — ERA 3 (1947-1970)

MASTER INVENTORY OF SUBORDINATE LEGISLATIONS — ERA 3 (1947-1970)

PAKISTAN PERIOD

EAST PAKISTAN / EAST BENGAL (PRESENT-DAY BANGLADESH)

Package SD-1 | Code of Delegated/Subordinate Legislation of Bangladesh

NOTE: Each entry is assigned a unique reference number in the format:

SD-1/E3/XXXX (SD-1 = Package, E3 = Era 3, XXXX = Serial Number)

SECTION A: CONSTITUTIONAL AND ADMINISTRATIVE

Ref No. : SD-1/E3/0001
Title : Pakistan (Provisional Constitution) Order, 1947
Date : 1947
Type : Order
Subject : Constitutional and Administrative Law
Authority : Governor-General of Pakistan
Parent Act : Indian Independence Act, 1947
Scope : Adaptation of Government of India Act 1935 as provisional constitution of Pakistan

Status : Superseded by Constitution of 1956
Notes : Foundation of Pakistan's legal order

Ref No. : SD-1/E3/0002
Title : Government of India (Adaptation of Existing Laws) Order, 1947
Date : 1947
Type : Order
Subject : Constitutional and Administrative Law
Authority : Governor-General of Pakistan
Parent Act : Indian Independence Act, 1947
Scope : Adaptation of all existing British Indian laws to the context of Pakistan

Status : Historical — served its purpose
Notes : Critical instrument for legal continuity

Ref No. : SD-1/E3/0003
Title : Pakistan (Adaptation of Existing Laws) Order, 1947
Date : 1947
Type : Order
Subject : Constitutional and Administrative Law
Authority : Governor-General of Pakistan
Parent Act : Indian Independence Act, 1947
Scope : Further adaptation of inherited laws
Status : Historical

Ref No. : SD-1/E3/0004
Title : East Bengal (Adaptation) Orders, 1948-1950
Date : 1948-1950 (series of orders)
Type : Orders
Subject : Constitutional and Administrative Law
Authority : Governor of East Bengal
Parent Act : Government of India Act, 1935 (as adapted)
Scope : Provincial-level adaptation of inherited laws for East Bengal
Status : Historical

Ref No. : SD-1/E3/0005
Title : Government Servants (Conduct) Rules, 1964
Date : 1964
Type : Rules
Subject : Constitutional and Administrative Law
Authority : Government of Pakistan
Parent Act : Government Servants (Conduct) Act
Scope : Code of conduct for government servants — restrictions on political activity, business, gifts, unauthorized communication

Status : In force in Bangladesh (with amendments)
 Notes : Still actively applied in Bangladesh public service
 Ref No. : SD-1/E3/0006
 Title : Government Servants (Efficiency and Discipline) Rules, 1960
 Date : 1960
 Type : Rules
 Subject : Constitutional and Administrative Law
 Authority : Government of Pakistan
 Parent Act : Various service legislation
 Scope : Disciplinary proceedings, penalties, appeals for civil servants
 Status : In force in Bangladesh (with amendments)

Ref No. : SD-1/E3/0007
 Title : East Pakistan Government Servants (Discipline and Appeal) Rules, 1961
 Date : 1961
 Type : Rules
 Subject : Constitutional and Administrative Law
 Authority : Governor of East Pakistan
 Parent Act : Provincial service legislation
 Scope : Provincial disciplinary procedure for government servants
 Status : In force (as adapted for Bangladesh)

Ref No. : SD-1/E3/0008
 Title : Civil Service Rules (Pakistan / East Pakistan)
 Date : 1947 (adapted from British Indian CSR)
 Type : Rules
 Subject : Constitutional and Administrative Law
 Authority : Government of Pakistan / East Pakistan
 Scope : Pay, allowances, leave, pension, retirement, medical benefits for civil servants
 Status : Partially in force (many provisions still applied)

Ref No. : SD-1/E3/0009
 Title : East Pakistan Services (Reorganization and Conditions) Rules, 1962
 Date : 1962
 Type : Rules
 Subject : Constitutional and Administrative Law
 Authority : Governor of East Pakistan
 Scope : Reorganization of provincial civil services
 Status : Superseded

Ref No. : SD-1/E3/0010
 Title : Legal Framework Order, 1970
 Date : 1970
 Type : Order
 Subject : Constitutional and Administrative Law
 Authority : President of Pakistan (Yahya Khan)
 Scope : Framework for transfer of power, elections, constitution-making
 Status : Historical
 Notes : Led to the 1970 elections and ultimately to independence of Bangladesh

Ref No. : SD-1/E3/0011
 Title : General Clauses (Adaptation) Order, 1947
 Date : 1947
 Type : Order
 Subject : Constitutional and Administrative Law
 Authority : Governor-General of Pakistan
 Parent Act : Indian Independence Act, 1947
 Scope : Adaptation of General Clauses Act, 1897
 Status : Historical

Ref No. : SD-1/E3/0012
 Title : Official Secrets Rules (Pakistan)

Date : 1947 (adapted)
Type : Rules
Subject : Constitutional and Administrative Law
Authority : Government of Pakistan
Parent Act : Official Secrets Act, 1923 (as adapted)
Scope : Classification, handling of official secrets
Status : In force

SECTION B: LAND AND REVENUE

Ref No. : SD-1/E3/0013
Title : East Bengal State Acquisition and Tenancy Rules, 1951
Date : 1951
Type : Rules
Subject : Land and Revenue
Authority : Government of East Bengal
Parent Act : East Bengal State Acquisition and Tenancy Act, 1950
(East Bengal Act XXVIII of 1951)
Scope : Implementation of zamindari abolition, acquisition of
rent-receiving interests, tenant rights, rent assessment,
ceiling on land holdings
Status : In force in Bangladesh
Notes : One of the most important sets of rules still actively
used in Bangladesh land administration

Ref No. : SD-1/E3/0014
Title : East Pakistan Land Revenue Rules
Date : 1950s (various)
Type : Rules
Subject : Land and Revenue
Authority : Government of East Pakistan
Parent Act : Various land revenue legislation
Scope : Revenue assessment, collection, record maintenance
Status : Partially in force

Ref No. : SD-1/E3/0015
Title : Non-Agricultural Tenancy Rules, 1949
Date : 1949
Type : Rules
Subject : Land and Revenue
Authority : Government of East Bengal
Parent Act : Non-Agricultural Tenancy Act, 1949
Scope : Rights of non-agricultural tenants, urban tenancy
Status : In force in Bangladesh

Ref No. : SD-1/E3/0016
Title : East Pakistan Land Reforms Rules
Date : 1961
Type : Rules
Subject : Land and Revenue
Authority : Government of East Pakistan
Parent Act : East Pakistan Land Reforms Ordinance, 1961
Scope : Ceiling on land holdings, redistribution of surplus land
Status : Partially in force

Ref No. : SD-1/E3/0017
Title : East Pakistan Survey and Settlement Rules
Date : 1955 (revised)
Type : Rules
Subject : Land and Revenue
Authority : Government of East Pakistan
Parent Act : Survey Act / State Acquisition and Tenancy Act
Scope : Land survey operations, settlement proceedings
Status : In force
Notes : Actively used in ongoing survey operations in Bangladesh

Ref No. : SD-1/E3/0018
Title : East Pakistan Public Demands Recovery Rules
Date : 1950s
Type : Rules
Subject : Land and Revenue / Finance
Authority : Government of East Pakistan
Parent Act : Public Demands Recovery Act, 1913 (as adapted)
Scope : Recovery of government dues
Status : In force

Ref No. : SD-1/E3/0019
Title : East Pakistan Government Estates (Management and Allotment) Rules

Date : 1952
Type : Rules
Subject : Land and Revenue
Authority : Government of East Pakistan
Parent Act : Government Estates Manual
Scope : Management, leasing, and allotment of government-owned land
Status : Partially in force

SECTION C: FAMILY AND PERSONAL LAW

Ref No. : SD-1/E3/0020
Title : Muslim Family Laws Rules, 1961
Date : 1961
Type : Rules
Subject : Family Law and Personal Law
Authority : Government of Pakistan
Parent Act : Muslim Family Laws Ordinance, 1961 (Ordinance VIII of 1961)
Scope : Marriage registration, polygamy restrictions, divorce procedure (talaq notice), maintenance, dower
Status : In force in Bangladesh
Notes : Critically important — governs Muslim marriage, divorce, and maintenance in Bangladesh today

Ref No. : SD-1/E3/0021
Title : Muslim Family Laws Rules (Registrar and Registration)
Date : 1961
Type : Rules
Subject : Family Law and Personal Law
Authority : Government of Pakistan
Parent Act : Muslim Family Laws Ordinance, 1961
Scope : Marriage registrar appointments, registration procedure
Status : In force in Bangladesh

Ref No. : SD-1/E3/0022
Title : Child Marriage Restraint Rules (Pakistan adaptation)
Date : 1947 (adapted)
Type : Rules
Subject : Family Law and Personal Law
Authority : Government of Pakistan
Parent Act : Child Marriage Restraint Act, 1929 (as adapted)
Scope : Minimum marriage age enforcement, penalties
Status : In force (as amended)

Ref No. : SD-1/E3/0023
Title : Dowry Prohibition Rules (if enacted before 1970)
Date : 1967
Type : Rules
Subject : Family Law and Personal Law
Authority : Government of Pakistan
Parent Act : Dowry Prohibition Ordinance (if applicable)
Scope : Prohibition and penalties for dowry demands
Status : Superseded by later legislation

Ref No. : SD-1/E3/0024
Title : Guardians and Wards Rules (adapted)
Date : 1947 (adapted)
Type : Rules
Subject : Family Law and Personal Law
Authority : Government of Pakistan
Parent Act : Guardians and Wards Act, 1890 (as adapted)
Scope : Appointment and powers of guardians, welfare of minors
Status : In force

SECTION D: LOCAL GOVERNMENT

Ref No. : SD-1/E3/0025
Title : Basic Democracies Rules, 1959
Date : 1959
Type : Rules
Subject : Local Government and Municipal Affairs
Authority : Government of Pakistan
Parent Act : Basic Democracies Order, 1959
Scope : Four-tier local government system — Union Council,
Thana Council, District Council, Divisional Council
Status : Repealed (system abolished post-independence)
Notes : Ayub Khan's local government system

Ref No. : SD-1/E3/0026
Title : Basic Democracies (Election) Rules, 1959
Date : 1959
Type : Rules
Subject : Local Government and Municipal Affairs
Authority : Government of Pakistan
Parent Act : Basic Democracies Order, 1959
Scope : Election procedure for Basic Democrats
Status : Repealed

Ref No. : SD-1/E3/0027
Title : East Pakistan Municipal Administration Rules
Date : 1960
Type : Rules
Subject : Local Government and Municipal Affairs
Authority : Government of East Pakistan
Parent Act : Municipal Administration Ordinance, 1960
Scope : Municipal committee formation, functions, finance
Status : Superseded

Ref No. : SD-1/E3/0028
Title : East Pakistan Municipal By-Laws (Dhaka)
Date : Various (1950s-1960s)
Type : By-Laws
Subject : Local Government and Municipal Affairs
Authority : Dhaka Municipality
Parent Act : Municipal Administration Ordinance
Scope : Building construction, sanitation, markets, trade licenses
Status : Superseded

Ref No. : SD-1/E3/0029
Title : East Pakistan Local Councils Service Rules
Date : 1960s
Type : Rules
Subject : Local Government and Municipal Affairs
Authority : Government of East Pakistan
Parent Act : Basic Democracies Order, 1959
Scope : Service conditions for local council staff
Status : Superseded

Ref No. : SD-1/E3/0030
Title : Town Improvement Trust Rules (Dhaka)

Date : 1956
Type : Rules
Subject : Local Government and Municipal Affairs
Authority : Government of East Pakistan
Parent Act : Town Improvement Act
Scope : Urban planning, land acquisition, development schemes
Status : Superseded by RAJUK rules

SECTION E: EDUCATION

Ref No. : SD-1/E3/0031
Title : Dhaka University Ordinances (Pakistan period)
Date : 1947-1970 (various)
Type : Ordinances/Statutes
Subject : Education
Authority : Dhaka University Senate/Syndicate
Parent Act : Dacca University Act, 1920 (as adapted) / Dacca University Order, 1961
Scope : University governance, degree requirements, examinations, student discipline, faculty appointments
Status : Superseded by later ordinances

Ref No. : SD-1/E3/0032
Title : Rajshahi University Ordinances and Statutes
Date : 1953 onwards
Type : Ordinances/Statutes
Subject : Education
Authority : Rajshahi University
Parent Act : Rajshahi University Act, 1953
Scope : University governance and academic regulations
Status : Superseded

Ref No. : SD-1/E3/0033
Title : Chittagong University Ordinances and Statutes
Date : 1966 onwards
Type : Ordinances/Statutes
Subject : Education
Authority : Chittagong University
Parent Act : Chittagong University Act, 1966
Scope : University governance and academic regulations
Status : Superseded

Ref No. : SD-1/E3/0034
Title : East Pakistan Intermediate and Secondary Education Board Rules

Date : 1961
Type : Rules
Subject : Education
Authority : Government of East Pakistan
Parent Act : Intermediate and Secondary Education Ordinance, 1961
Scope : Examination boards, secondary education regulation
Status : Superseded by later rules

Ref No. : SD-1/E3/0035
Title : East Pakistan Compulsory Primary Education Rules
Date : 1960s
Type : Rules
Subject : Education
Authority : Government of East Pakistan
Parent Act : Compulsory Primary Education Ordinance
Scope : Compulsory enrollment, school standards, penalties
Status : Superseded

Ref No. : SD-1/E3/0036
Title : East Pakistan Madrasah Education Board Rules
Date : 1960s

Type	: Rules
Subject	: Education
Authority	: Government of East Pakistan
Parent Act	: Madrasah Education Ordinance
Scope	: Madrasah curriculum, examinations, recognition
Status	: Superseded by later madrasah education rules
Ref No.	: SD-1/E3/0037
Title	: East Pakistan Technical Education Rules
Date	: 1960s
Type	: Rules
Subject	: Education
Authority	: Government of East Pakistan
Parent Act	: East Pakistan Technical Education Board Order
Scope	: Technical and vocational education regulation
Status	: Superseded

SECTION F: LABOUR AND EMPLOYMENT

Ref No. : SD-1/E3/0038
 Title : East Pakistan Factories Rules
 Date : 1965 (revised)
 Type : Rules
 Subject : Labour and Employment
 Authority : Government of East Pakistan
 Parent Act : Factories Act, 1965
 Scope : Factory registration, working conditions, safety,
 working hours, child labour prohibition
 Status : Superseded by Bangladesh Factories Rules

Ref No.	: SD-1/E3/0039
Title	: Industrial Relations Rules, 1969
Date	: 1969
Type	: Rules
Subject	: Labour and Employment
Authority	: Government of Pakistan
Parent Act	: Industrial Relations Ordinance, 1969
Scope	: Trade union registration, collective bargaining, strikes, lockouts, industrial dispute resolution
Status	: Superseded but provisions survived in Bangladesh labour law

Ref No. : SD-1/E3/0040
Title : East Pakistan Shops and Establishments Rules
Date : 1965
Type : Rules
Subject : Labour and Employment
Authority : Government of East Pakistan
Parent Act : Shops and Establishments Act, 1965
Scope : Working hours, holidays, conditions in commercial establishments
Status : Partially in force

Ref No. : SD-1/E3/0041
Title : East Pakistan Minimum Wages Rules
Date : 1961
Type : Rules
Subject : Labour and Employment
Authority : Government of East Pakistan
Parent Act : Minimum Wages Ordinance, 1961
Scope : Minimum wage fixation, wage boards
Status : Superseded

Ref No. : SD-1/E3/0042
Title : Employment of Children Rules (Pakistan)
Date : 1955
Type : Rules

Subject : Labour and Employment
Authority : Government of Pakistan
Parent Act : Employment of Children Act, 1938 (as adapted)
Scope : Prohibition and regulation of child labour
Status : Superseded by later child labour rules

Ref No. : SD-1/E3/0043
Title : Dock Workers (Regulation of Employment) Rules
Date : 1950s
Type : Rules
Subject : Labour and Employment
Authority : Government of East Pakistan
Parent Act : Dock Workers Regulation Act
Scope : Employment conditions for port/dock workers
Status : Partially in force
Notes : Important for Chittagong port workers

SECTION G: TRADE, COMMERCE AND INDUSTRY

Ref No. : SD-1/E3/0044
Title : Import and Export (Control) Rules
Date : 1950 (amended frequently)
Type : Rules
Subject : Trade, Commerce and Industry
Authority : Government of Pakistan
Parent Act : Import and Export (Control) Act, 1950
Scope : Import-export licensing, restrictions, customs procedures
Status : Superseded by later trade rules

Ref No. : SD-1/E3/0045
Title : Companies Rules (Pakistan)
Date : 1947 (adapted from Indian Companies Rules)
Type : Rules
Subject : Trade, Commerce and Industry
Authority : Government of Pakistan
Parent Act : Companies Act, 1913 (as adapted)
Scope : Company incorporation, management, winding up
Status : Superseded

Ref No. : SD-1/E3/0046
Title : East Pakistan Cooperative Societies Rules
Date : 1948 (revised)
Type : Rules
Subject : Trade, Commerce and Industry
Authority : Government of East Pakistan
Parent Act : Co-operative Societies Act, 1940 (as adapted)
Scope : Registration, management, audit of cooperatives
Status : Superseded

Ref No. : SD-1/E3/0047
Title : Banking Companies Rules (Pakistan)
Date : 1962
Type : Rules
Subject : Trade, Commerce and Industry / Finance
Authority : Government of Pakistan / State Bank
Parent Act : Banking Companies Ordinance, 1962
Scope : Banking regulation, licensing, capital requirements
Status : Superseded

Ref No. : SD-1/E3/0048
Title : East Pakistan Small Industries Corporation Rules
Date : 1957
Type : Rules
Subject : Trade, Commerce and Industry
Authority : Government of East Pakistan
Parent Act : East Pakistan Small Industries Corporation Act

Scope : Promotion and regulation of small industries
Status : Superseded
Ref No. : SD-1/E3/0049
Title : Pakistan Industries (Development and Regulation) Rules
Date : 1952
Type : Rules
Subject : Trade, Commerce and Industry
Authority : Government of Pakistan
Parent Act : Industries (Development and Regulation) Act
Scope : Industrial licensing, regulation of scheduled industries
Status : Superseded

SECTION H: FINANCE, BANKING AND TAXATION

Ref No. : SD-1/E3/0050
Title : East Pakistan Agricultural Income Tax Rules
Date : 1947 (adapted from Bengal rules)
Type : Rules
Subject : Finance, Banking and Taxation
Authority : Government of East Pakistan
Parent Act : Bengal Agricultural Income Tax Act, 1944 (as adapted)
Scope : Agricultural income tax assessment and collection
Status : In force (as adapted for Bangladesh)

Ref No. : SD-1/E3/0051
Title : Income Tax Rules (Pakistan)
Date : 1947 (adapted, frequently amended)
Type : Rules
Subject : Finance, Banking and Taxation
Authority : Government of Pakistan / Central Board of Revenue
Parent Act : Income Tax Ordinance, 1952 / Income Tax Act, 1922 (adapted)
Scope : Income tax assessment, returns, deductions, appeals
Status : Superseded by later income tax rules

Ref No. : SD-1/E3/0052
Title : East Pakistan Sales Tax Rules
Date : 1960s
Type : Rules
Subject : Finance, Banking and Taxation
Authority : Government of East Pakistan
Parent Act : Provincial sales tax legislation
Scope : Sales tax collection on goods
Status : Superseded

Ref No. : SD-1/E3/0053
Title : East Pakistan Excise Rules (adapted)
Date : 1947 (adapted from Bengal Excise Rules)
Type : Rules
Subject : Finance, Banking and Taxation
Authority : Government of East Pakistan
Parent Act : Bengal Excise Act, 1909 (as adapted)
Scope : Excise duties, liquor regulation
Status : Partially in force

Ref No. : SD-1/E3/0054
Title : Pakistan Stamp Rules (adapted)
Date : 1947 (adapted)
Type : Rules
Subject : Finance, Banking and Taxation
Authority : Government of Pakistan / East Pakistan
Parent Act : Stamp Act, 1899 (as adapted)
Scope : Stamp duty rates, procedures, adjudication
Status : Partially in force

SECTION I: MARTIAL LAW INSTRUMENTS

Ref No. : SD-1/E3/0055
Title : Martial Law (General) Orders, 1958
Date : October 1958 onwards
Type : Orders
Subject : Constitutional and Administrative / Criminal Law
Authority : Chief Martial Law Administrator (Ayub Khan)
Scope : Suspension of constitution, martial law administration
Status : Historical
Notes : First martial law in Pakistan; significant impact on
legal and administrative structure

Ref No. : SD-1/E3/0056
Title : Martial Law Regulations (MLRs), 1958-1962
Date : 1958-1962 (series)
Type : Regulations
Subject : Constitutional and Administrative
Authority : Chief Martial Law Administrator
Scope : Various regulatory measures — land reform, anti-corruption,
public order, press control
Status : Some provisions absorbed into subsequent legislation;
most repealed

Ref No. : SD-1/E3/0057
Title : Elective Bodies (Disqualification) Order, 1959
(EBDO)
Date : 1959
Type : Order
Subject : Constitutional and Administrative
Authority : President of Pakistan
Scope : Disqualification of politicians from public office
Status : Repealed
Notes : Politically significant instrument

Ref No. : SD-1/E3/0058
Title : Martial Law Orders, 1969-1970 (Yahya Khan)
Date : 1969-1970 (series)
Type : Orders
Subject : Constitutional and Administrative
Authority : Chief Martial Law Administrator (Yahya Khan)
Scope : Abrogation of 1962 Constitution, elections framework
Status : Historical
Notes : Led to the 1970 general elections

Ref No. : SD-1/E3/0059
Title : Industrial Disputes Martial Law Regulation
Date : 1958
Type : Regulation
Subject : Labour / Constitutional
Authority : Chief Martial Law Administrator
Scope : Prohibition of strikes, compulsory arbitration
Status : Repealed after martial law ended

Ref No. : SD-1/E3/0060
Title : Public and Representative Offices
(Disqualification) Order, 1959 (PRODA adaptation)
Date : 1959
Type : Order
Subject : Constitutional and Administrative
Authority : President of Pakistan
Scope : Anti-corruption, disqualification from office
Status : Repealed

SECTION J: CRIMINAL LAW AND POLICE

Ref No. : SD-1/E3/0061

Title : East Pakistan Criminal Rules and Orders
(adapted from Bengal Criminal Rules)
Date : 1947 (adapted, amended periodically)
Type : Rules
Subject : Criminal Law and Justice
Authority : High Court of East Pakistan / Government of East Pakistan
Parent Act : Code of Criminal Procedure, 1898 (as adapted)
Scope : Criminal court procedure, practice directions
Status : In force (adapted for Bangladesh)
Ref No. : SD-1/E3/0062
Title : East Pakistan Police Rules
(adapted from Police Regulations of Bengal)
Date : 1947 (adapted, revised)
Type : Rules
Subject : Police and Public Order
Authority : Government of East Pakistan
Parent Act : Police Act, 1861 (as adapted)
Scope : Police organization, investigation procedures, discipline
Status : Partially in force in Bangladesh
Ref No. : SD-1/E3/0063
Title : East Pakistan Arms Rules
Date : 1947 (adapted, revised 1958)
Type : Rules
Subject : Police and Public Order
Authority : Government of East Pakistan
Parent Act : Arms Act, 1878 (as adapted)
Scope : Arms licensing, possession, manufacture
Status : Superseded by Bangladesh Arms Rules
Ref No. : SD-1/E3/0064
Title : East Pakistan Special Powers Rules
Date : 1958
Type : Rules
Subject : Police and Public Order
Authority : Government of East Pakistan
Parent Act : Special Powers legislation
Scope : Preventive detention, anti-hoarding, anti-smuggling
Status : Superseded
Ref No. : SD-1/E3/0065
Title : East Pakistan Jail Code / Prison Rules (revised)
Date : 1947 (adapted from Bengal Jail Code, revised)
Type : Rules
Subject : Prisons and Correctional Services
Authority : Government of East Pakistan
Parent Act : Prisons Act, 1894 (as adapted)
Scope : Prison administration, prisoner classification, discipline
Status : Partially in force in Bangladesh

SECTION K: HEALTH AND SANITATION

Ref No. : SD-1/E3/0066
Title : East Pakistan Medical Council Rules
Date : 1960s
Type : Rules
Subject : Health and Sanitation
Authority : Government of East Pakistan
Parent Act : Medical legislation
Scope : Medical practitioner registration, discipline
Status : Superseded
Ref No. : SD-1/E3/0067
Title : East Pakistan Drugs Rules (adapted)
Date : 1947 (adapted from Bengal Drugs Rules)

Type : Rules
Subject : Health and Sanitation
Authority : Government of East Pakistan
Parent Act : Drugs Act, 1940 (as adapted)
Scope : Drug manufacture, sale, quality control
Status : Superseded by later drugs rules

Ref No. : SD-1/E3/0068
Title : Pakistan Pure Food Rules
Date : 1960s
Type : Rules
Subject : Health and Sanitation
Authority : Government of Pakistan
Parent Act : Pure Food Ordinance, 1960
Scope : Food safety standards, adulteration prevention
Status : Superseded

Ref No. : SD-1/E3/0069
Title : East Pakistan Public Health Rules (adapted)
Date : 1947 (adapted)
Type : Rules
Subject : Health and Sanitation
Authority : Government of East Pakistan
Parent Act : Bengal Public Health Act, 1919 (as adapted)
Scope : Public health administration in East Pakistan
Status : Partially in force

SECTION L: TRANSPORT AND COMMUNICATION

Ref No. : SD-1/E3/0070
Title : East Pakistan Motor Vehicles Rules
Date : 1947 (adapted, revised 1960s)
Type : Rules
Subject : Transport and Communication
Authority : Government of East Pakistan
Parent Act : Motor Vehicles Act, 1939 (as adapted)
Scope : Vehicle registration, driving licenses, permits
Status : Superseded by Bangladesh Motor Vehicles Rules

Ref No. : SD-1/E3/0071
Title : East Pakistan Inland Water Transport Rules
Date : 1950s
Type : Rules
Subject : Transport and Communication
Authority : Government of East Pakistan
Parent Act : Inland Water Transport Authority Ordinance
Scope : Inland waterway regulation, vessel safety
Status : Partially in force

Ref No. : SD-1/E3/0072
Title : Chittagong Port Rules (Pakistan period)
Date : 1950s (revised)
Type : Rules
Subject : Transport and Communication
Authority : Government of East Pakistan / Chittagong Port Trust
Parent Act : Port Trust Act
Scope : Port operations, shipping, customs procedures
Status : Superseded

Ref No. : SD-1/E3/0073
Title : Pakistan Railway Rules (applicable to East Pakistan)
Date : 1947 (adapted)
Type : Rules
Subject : Transport and Communication
Authority : Government of Pakistan
Parent Act : Railways Act, 1890 (as adapted)

Scope : Railway operations, passenger regulations, goods transport
Status : Superseded

SECTION M: FORESTS, AGRICULTURE AND FISHERIES

Ref No. : SD-1/E3/0074
Title : East Pakistan Forest Rules (adapted)
Date : 1947 (adapted from Bengal Forest Rules)
Type : Rules
Subject : Forests and Environment
Authority : Government of East Pakistan
Parent Act : Forest Act, 1927 (as adapted)
Scope : Forest administration, timber trade, Sundarbans management
Status : Partially in force in Bangladesh

Ref No. : SD-1/E3/0075
Title : East Pakistan Private Forests Rules (adapted)
Date : 1947 (adapted)
Type : Rules
Subject : Forests and Environment
Authority : Government of East Pakistan
Parent Act : Bengal Private Forests Act, 1946 (as adapted)
Scope : Private forest regulation and conservation
Status : Partially in force

Ref No. : SD-1/E3/0076
Title : East Pakistan Fisheries Rules
Date : 1950s
Type : Rules
Subject : Agriculture, Fisheries and Livestock
Authority : Government of East Pakistan
Parent Act : Protection and Conservation of Fish Act
Scope : Fishing regulation, conservation, licensing
Status : Partially in force

Ref No. : SD-1/E3/0077
Title : East Pakistan Agricultural Development Corporation Rules
Date : 1961
Type : Rules
Subject : Agriculture, Fisheries and Livestock
Authority : Government of East Pakistan
Parent Act : East Pakistan Agricultural Development Corporation
Ordinance, 1961
Scope : Agricultural development, input supply, credit
Status : Superseded

Ref No. : SD-1/E3/0078
Title : East Pakistan Jute Regulation Rules
Date : 1950s
Type : Rules
Subject : Agriculture / Trade
Authority : Government of East Pakistan
Parent Act : Jute Regulation Act
Scope : Jute marketing, quality, pricing
Status : Superseded

SECTION N: REGISTRATION AND STAMPS

Ref No. : SD-1/E3/0079
Title : East Pakistan Registration Rules (adapted)
Date : 1947 (adapted from Bengal Registration Rules)
Type : Rules
Subject : Registration and Stamps
Authority : Government of East Pakistan
Parent Act : Registration Act, 1908 (as adapted)

Scope : Document registration, property transfer registration
Status : In force in Bangladesh
Notes : Still actively used for property registration
Ref No. : SD-1/E3/0080
Title : Pakistan Births, Deaths and Marriages Registration Rules
Date : 1950s
Type : Rules
Subject : Registration
Authority : Government of Pakistan / East Pakistan
Scope : Vital events registration procedure
Status : Superseded by later registration rules

SECTION O: RELIGIOUS ENDOWMENTS

Ref No. : SD-1/E3/0081
Title : East Pakistan Waqf Rules (adapted and revised)
Date : 1947-1962
Type : Rules
Subject : Religious and Charitable Endowments
Authority : Government of East Pakistan
Parent Act : Bengal Wakf Act, 1934 (as adapted) /
Waqf Ordinance, 1962

Scope : Waqf property registration, administration, Waqf Board
Status : Superseded by later waqf rules

Ref No. : SD-1/E3/0082
Title : East Pakistan Hindu Religious Endowments Rules
Date : 1947 (adapted)
Type : Rules
Subject : Religious and Charitable Endowments
Authority : Government of East Pakistan
Parent Act : Bengal Hindu Religious Endowments Act, 1939 (as adapted)
Scope : Administration of Hindu temples and endowments
Status : Partially in force

SECTION P: COOPERATIVE SOCIETIES AND MISCELLANEOUS

Ref No. : SD-1/E3/0083
Title : East Pakistan Cooperative Societies Rules (revised)
Date : 1960s (revised)
Type : Rules
Subject : Trade, Commerce and Industry
Authority : Government of East Pakistan
Parent Act : Co-operative Societies Ordinance
Scope : Cooperative formation, management, audit, liquidation
Status : Superseded

Ref No. : SD-1/E3/0084
Title : East Pakistan Boiler Rules
Date : 1947 (adapted)
Type : Rules
Subject : Trade, Commerce and Industry
Authority : Government of East Pakistan
Parent Act : Boilers Act, 1923 (as adapted)
Scope : Boiler inspection and safety
Status : Partially in force

Ref No. : SD-1/E3/0085
Title : East Pakistan Electricity Rules
Date : 1950s
Type : Rules
Subject : Trade, Commerce and Industry
Authority : Government of East Pakistan
Parent Act : Electricity Act, 1910 (as adapted)

Scope : Electricity supply, licensing, safety, tariffs
 Status : Superseded
 Ref No. : SD-1/E3/0086
 Title : East Pakistan Explosive Rules
 Date : 1947 (adapted)
 Type : Rules
 Subject : Police and Public Order
 Authority : Government of East Pakistan
 Parent Act : Explosives Act, 1884 (as adapted)
 Scope : Explosives manufacture, storage, transport
 Status : Partially in force
 Ref No. : SD-1/E3/0087
 Title : Pakistan Press and Publications Rules
 Date : 1960s
 Type : Rules
 Subject : Constitutional and Administrative
 Authority : Government of Pakistan
 Parent Act : Press and Publications Ordinance, 1960
 Scope : Press registration, censorship, publication control
 Status : Repealed/Superseded
 Ref No. : SD-1/E3/0088
 Title : East Pakistan Entertainment Tax Rules
 Date : 1950s
 Type : Rules
 Subject : Finance, Banking and Taxation
 Authority : Government of East Pakistan
 Parent Act : Entertainment Tax Act
 Scope : Tax on cinema, performances, entertainment
 Status : Superseded
 Ref No. : SD-1/E3/0089
 Title : East Pakistan Cinemas Rules
 Date : 1950s
 Type : Rules
 Subject : Miscellaneous
 Authority : Government of East Pakistan
 Parent Act : Cinematograph Act
 Scope : Cinema licensing, film censorship, safety
 Status : Superseded
 Ref No. : SD-1/E3/0090
 Title : East Pakistan Antiquities Rules
 Date : 1960s
 Type : Rules
 Subject : Miscellaneous
 Authority : Government of East Pakistan
 Parent Act : Antiquities Act, 1968
 Scope : Protection of historical sites and artifacts
 Status : Partially in force

SUMMARY — ERA 3 (1947-1970)

Total Entries in this Volume : 90

By Type:

- Rules : 62
- Orders : 15
- Regulations : 5
- By-Laws : 2
- Ordinances/Statutes : 6

By Subject:

- Constitutional and Admin : 16

- Land and Revenue : 7
- Family Law and Personal Law : 5
- Local Government : 6
- Education : 7
- Labour and Employment : 6
- Trade, Commerce, Industry : 7
- Finance and Taxation : 6
- Criminal Law and Justice : 2
- Police and Public Order : 4
- Health and Sanitation : 4
- Transport and Communication : 4
- Forests and Environment : 2
- Agriculture and Fisheries : 3
- Registration : 2
- Religious Endowments : 2
- Prisons : 1
- Miscellaneous : 6

By Status:

- In force in Bangladesh : 18
- Partially in force : 22
- Superseded : 35
- Repealed/Historical : 15

NOTE: The Pakistan period generated a very large volume of subordinate legislation, including numerous adaptation orders, government notifications, and martial law instruments. This inventory captures the most significant instruments. Complete enumeration requires examination of the East Pakistan **Gazette (1947-1970)** and the **Gazette of Pakistan for central legislation**.

END OF ERA 3 INVENTORY

5

ANALYSIS AND CLASSIFICATION REPORT

ANALYSIS AND CLASSIFICATION REPORT — PACKAGE SD-1 (1799-1970)

CODE OF DELEGATED/SUBORDINATE LEGISLATION OF BANGLADESH
Period: 1799-1970

Prepared by: THE LEGAL EMPIRE
www.thelegalempire.org

EOI Ref No. : 55.00.0000.120.14.065.24.1493
Project Code : 224359600
Package No. : SD-1 (1799-1970)

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 - Part VI : Status Analysis
 - Part VII : Cross-referencing Analysis
 - Part VIII : Gaps, Inconsistencies, and Recommendations
-

PART I: EXECUTIVE SUMMARY

This Analysis and Classification Report presents the findings of the comprehensive identification, analysis, and classification exercise conducted under Package SD-1 of the Strengthening Legislative Capacity and Legal Awareness Building Project. The report covers all delegated/subordinate legislations (rules, regulations, by-laws, orders, notifications, etc.) identified for the period 1799-1970.

Key Findings:

- Total subordinate legislations identified: [Insert Total Number]
 - Active/In Force: [Insert Number] ([X]%)
 - Amended: [Insert Number] ([X]%)
 - Repealed: [Insert Number] ([X]%)
 - Obsolete/Spent: [Insert Number] ([X]%)
 - Status Uncertain: [Insert Number] ([X]%)
-

PART II: ANALYTICAL FRAMEWORK

Each subordinate legislation has been analyzed across the following parameters:

1. IDENTIFICATION DATA
 - Unique Reference Number (SD-1/XXXX)
 - Full Title
 - Short Title (if any)
 - Date of Enactment/Promulgation
 - Date of Commencement
 - Gazette Reference (gazette number, date, page)
2. LEGAL AUTHORITY
 - Parent/Enabling Act (full citation)
 - Specific Section(s) conferring rule-making power
 - Rule-making Authority (who made the subordinate legislation)
 - Territorial Application

3. CLASSIFICATION
 - Historical Era (Era 1/2/3)
 - Type of Instrument (Rules/Regulations/By-Laws/Orders/Notifications)
 - Primary Subject Category (from 20 categories)
 - Secondary Subject Category (if applicable)
 - Responsible Ministry/Division (current Bangladesh equivalent)
4. STATUS ANALYSIS
 - Current Legal Status
 - Amendment History (all amendments with dates)
 - Repealing Instrument (if repealed)
 - Superseding Instrument (if superseded)
 - Judicial Pronouncements (if any)
5. CROSS-REFERENCES
 - Related Subordinate Legislations
 - Related Parent Acts
 - Successor Instruments

PART III: STATISTICAL OVERVIEW

A. BY HISTORICAL ERA:

Era	Count	Percentage
Era 1: EIC Period (1799-1858)	[Number]	[X]%
Era 2: British Crown (1858-1947)	[Number]	[X]%
Era 3: Pakistan (1947-1970)	[Number]	[X]%
TOTAL	[Number]	100%

B. BY TYPE OF INSTRUMENT:

Type	Era 1	Era 2	Era 3	Total	%
Rules	[N]	[N]	[N]	[N]	[X]%
Regulations	[N]	[N]	[N]	[N]	[X]%
By-Laws	[N]	[N]	[N]	[N]	[X]%
Orders	[N]	[N]	[N]	[N]	[X]%
Notifications	[N]	[N]	[N]	[N]	[X]%
Circulars	[N]	[N]	[N]	[N]	[X]%
Others	[N]	[N]	[N]	[N]	[X]%
TOTAL	[N]	[N]	[N]	[N]	100%

C. BY SUBJECT MATTER:

S/N	Subject Category	Count	%
01	Constitutional and Administrative Law	[N]	[X]%
02	Criminal Law and Justice	[N]	[X]%
03	Civil Law and Justice	[N]	[X]%
04	Land and Revenue	[N]	[X]%
05	Local Government and Municipal Affairs	[N]	[X]%
06	Education	[N]	[X]%
07	Health and Sanitation	[N]	[X]%
08	Labour and Employment	[N]	[X]%
09	Trade, Commerce and Industry	[N]	[X]%
10	Finance, Banking and Taxation	[N]	[X]%
11	Transport and Communication	[N]	[X]%
12	Agriculture, Fisheries and Livestock	[N]	[X]%
13	Forests and Environment	[N]	[X]%
14	Police and Public Order	[N]	[X]%
15	Prisons and Correctional Services	[N]	[X]%
16	Registration and Stamps	[N]	[X]%
17	Family Law and Personal Law	[N]	[X]%
18	Military and Defence	[N]	[X]%
19	Religious and Charitable Endowments	[N]	[X]%
20	Miscellaneous	[N]	[X]%
	TOTAL	[N]	100%

D. BY CURRENT STATUS:

Status	Era 1	Era 2	Era 3	Total	%
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Active/In Force	[N]	[N]	[N]	[N]	[X]%
Amended	[N]	[N]	[N]	[N]	[X]%
Repealed	[N]	[N]	[N]	[N]	[X]%
Obsolete/Spent	[N]	[N]	[N]	[N]	[X]%
Superseded	[N]	[N]	[N]	[N]	[X]%
Partially in Force	[N]	[N]	[N]	[N]	[X]%
Status Uncertain	[N]	[N]	[N]	[N]	[X]%
TOTAL	[N]	[N]	[N]	[N]	100%

PART IV: ERA-WISE ANALYSIS

ERA 1: EAST INDIA COMPANY PERIOD (1799-1858)

Overview:

The earliest period of codified subordinate legislation in Bengal dates from 1799 when the Governor-General Lord Wellesley initiated systematic regulation. The Bengal Regulations (1799-1834) represent the foundational layer of delegated legislation applicable to present-day Bangladesh.

Key Characteristics:

- Regulations were the primary instrument of governance
- Governor-General in Council held both legislative and executive power
- Subordinate legislation was less differentiated from primary legislation
- Revenue administration was the dominant subject area
- Judicial administration regulations were extensive
- Limited separation of powers

Significant Subordinate Legislations Identified:

[To be populated with detailed entries from Master Inventory]

Analysis Notes:

- Many regulations from this era have been repealed or superseded
- Some foundational principles from these regulations survive in current law (particularly land revenue and civil procedure)
- Language: primarily English, with some Persian/Urdu documents

ERA 2: BRITISH CROWN RULE (1858-1947)

Overview:

This is the most prolific period for subordinate legislation, spanning nearly 90 years of British Crown administration. The Government of India Acts of 1919 and 1935 significantly expanded the scope and volume of delegated legislation, particularly at the provincial level.

Key Characteristics:

- Clear distinction between primary and subordinate legislation
- Extensive rule-making under major codifying statutes
- Provincial autonomy (post-1919) led to Bengal-specific rules
- Systematic gazette publication
- Rapid expansion during World Wars (emergency regulations)
- Local government by-laws proliferated

Major Parent Acts and Their Subordinate Legislations:

A) CRIMINAL LAW AND JUSTICE:

- Indian Penal Code, 1860 (Act XLV of 1860)
 - * Related Rules and Notifications: [List]
- Code of Criminal Procedure, 1898 (Act V of 1898)
 - * Criminal Rules and Orders: [List]
 - * High Court Rules: [List]

- Indian Evidence Act, 1872 (Act I of 1872)
 - * Related Notifications: [List]
- Bengal Police Act, 1861 / Police Act, 1861
 - * Police Regulations of Bengal: [List]
 - * Bengal Police Rules: [List]

B) CIVIL LAW AND JUSTICE:

- Code of Civil Procedure, 1908 (Act V of 1908)
 - * Civil Rules and Orders: [List]
 - * High Court Rules: [List]
- Limitation Act, 1908 / Limitation Act, 1877
 - * Related Notifications: [List]
- Specific Relief Act, 1877
 - * Related Rules: [List]
- Bengal Civil Courts Act, 1887
 - * Rules under the Act: [List]

C) LAND AND REVENUE:

- Bengal Tenancy Act, 1885 (Act VIII of 1885)
 - * Bengal Tenancy Rules: [List]
- Bengal Land Revenue Sales Act, 1859
 - * Related Rules: [List]
- Bengal Alluvion and Diluvion Act, 1825
 - * Related Rules: [List]
- Bengal Survey Act, 1875
 - * Survey Rules: [List]
- Bengal State Acquisition and Tenancy Act, 1950 (bridges to Era 3)
 - * Related Rules: [List]
- Cess Act, 1880
 - * Cess Rules: [List]
- Bengal Public Demands Recovery Act, 1913
 - * Related Rules: [List]

D) LOCAL GOVERNMENT AND MUNICIPAL:

- Bengal Municipal Act, 1884 / Bengal Municipal Act, 1932
 - * Municipal By-Laws: [List]
- Bengal Village Self-Government Act, 1919
 - * Union Board Rules: [List]
- Bengal Local Self-Government Act, 1885
 - * District Board Rules: [List]
- Bengal Panchayat Act, 1920
 - * Panchayat Rules: [List]

E) EDUCATION:

- Bengal Primary Education Act, 1919
 - * Primary Education Rules: [List]
- Calcutta University Act, 1857/1904
 - * University Regulations: [List]
- Dacca University Act, 1920
 - * University Ordinances and Regulations: [List]
- Bengal Education Code
 - * Various Rules and Orders: [List]

F) LABOUR AND EMPLOYMENT:

- Indian Factories Act, 1881/1911/1934
 - * Factory Rules: [List]

- Indian Mines Act, 1923
 - * Mining Rules: [List]
- Workmen's Compensation Act, 1923
 - * Compensation Rules: [List]
- Trade Unions Act, 1926
 - * Trade Union Regulations: [List]
- Payment of Wages Act, 1936
 - * Related Rules: [List]

G) TRADE AND COMMERCE:

- Indian Companies Act, 1913
 - * Companies Rules: [List]
- Indian Partnership Act, 1932
 - * Partnership Rules: [List]
- Indian Sale of Goods Act, 1930
 - * Related Rules: [List]
- Bengal Money-Lenders Act, 1940
 - * Related Rules: [List]

H) REGISTRATION AND STAMPS:

- Indian Registration Act, 1908
 - * Registration Rules: [List]
- Indian Stamp Act, 1899
 - * Stamp Rules and Notifications: [List]

I) HEALTH AND SANITATION:

- Bengal Public Health Act, 1919
 - * Public Health Rules: [List]
- Bengal Epidemics Act, various years
 - * Related Orders and Notifications: [List]
- Vaccination Act, 1880
 - * Vaccination Rules: [List]

J) FORESTS AND ENVIRONMENT:

- Indian Forest Act, 1927 (Act XVI of 1927)
 - * Forest Rules: [List]
- Bengal Private Forests Act, 1946
 - * Related Rules: [List]

K) FINANCE AND TAXATION:

- Indian Income Tax Act, 1922
 - * Income Tax Rules: [List]
- Bengal Agricultural Income Tax Act, 1944
 - * Agricultural Income Tax Rules: [List]
- Bengal Excise Act, 1909
 - * Excise Rules: [List]
- Bengal Amusements Tax Act, 1922
 - * Amusement Tax Rules: [List]

L) TRANSPORT AND COMMUNICATION:

- Indian Railways Act, 1890
 - * Railway Rules: [List]
- Indian Motor Vehicles Act, 1939
 - * Motor Vehicles Rules: [List]
- Indian Ports Act, 1908
 - * Port Rules: [List]
- Indian Telegraph Act, 1885

* Telegraph Rules: [List]

Analysis Notes:

- This era has the largest volume of subordinate legislation
- Bengal-specific rules form a significant subset
- Emergency wartime regulations add substantial volume
- Many rules from this era remain partially in force in Bangladesh

ERA 3: PAKISTAN PERIOD (1947-1970)

Overview:

Upon independence in 1947, Pakistan (including East Pakistan / present-day Bangladesh) inherited the entire body of British Indian law. The Pakistan period saw adaptation, modification, and creation of new subordinate legislation to suit the new national context.

Key Characteristics:

- Continuity of pre-partition laws through adaptation orders
- New rule-making under Pakistani central and provincial Acts
- Martial Law periods generated significant subordinate legislation
- Islamic law considerations influenced some rules
- Provincial autonomy for East Pakistan in certain subjects
- Land reform generated new subordinate legislation

Major Parent Acts and Their Subordinate Legislations:

A) CONSTITUTIONAL AND ADMINISTRATIVE:

- Government of India (Adaptation) Order, 1947
 - * Adaptation orders and notifications
- Pakistan (Provisional Constitution) Order, 1947
 - * Related orders
- Constitution of Pakistan, 1956
 - * Constitutional rules and orders
- Constitution of Pakistan, 1962
 - * Constitutional rules and orders
- Legal Framework Order, 1970
 - * Related orders
- General Clauses Act, 1897 (as adapted)
 - * Related notifications

B) LAND AND REVENUE:

- East Bengal State Acquisition and Tenancy Act, 1950
 - * State Acquisition Rules: [List]
 - * Tenancy Rules: [List]
- East Pakistan Land Revenue Ordinance
 - * Revenue Rules: [List]
- Non-Agricultural Tenancy Act, 1949
 - * Related Rules: [List]

C) FAMILY AND PERSONAL LAW:

- Muslim Family Laws Ordinance, 1961
 - * Muslim Family Laws Rules, 1961: [List]
- Dissolution of Muslim Marriages Act, 1939
 - * Related Rules: [List]
- Child Marriage Restraint Act, 1929 (as adapted)
 - * Related Rules: [List]

D) LOCAL GOVERNMENT:

- Basic Democracies Order, 1959

- * Basic Democracies Rules: [List]
- * Municipal Administration Rules: [List]
- East Pakistan Municipal Administration Ordinance
- * Municipal By-Laws: [List]
- East Pakistan Local Councils Service Rules

E) EDUCATION:

- University Ordinances (Dhaka, Rajshahi, Chittagong)
- * University Regulations and Statutes: [List]
- East Pakistan Education Ordinance
- * Education Rules: [List]
- East Pakistan Compulsory Primary Education Ordinance
- * Related Rules: [List]

F) LABOUR AND INDUSTRIAL:

- Industrial Relations Ordinance, 1969
- * Industrial Relations Rules: [List]
- Factories Act, 1965
- * Factory Rules: [List]
- Shops and Establishments Act, 1965
- * Related Rules: [List]
- East Pakistan Minimum Wages Ordinance
- * Minimum Wages Rules: [List]

G) TRADE AND COMMERCE:

- Companies Act, 1913 (as adapted)
- * Companies Rules: [List]
- Import and Export (Control) Act, 1950
- * Import-Export Rules and Orders: [List]
- Banking Companies Ordinance, 1962
- * Banking Regulations: [List]

H) MARTIAL LAW INSTRUMENTS:

- Martial Law Orders (MLOs) 1958-1962
- * Various Orders and Regulations: [List]
- Martial Law Regulations (MLRs) 1958-1962
- * Various Regulations: [List]
- Martial Law Orders (MLOs) 1969-1970
- * Various Orders: [List]

I) PUBLIC SERVICE:

- Government Servants (Conduct) Rules, 1964
- East Pakistan Government Servants (Discipline and Appeal) Rules
- Civil Service Rules (East Pakistan)
- Various Service Cadre Rules

J) COOPERATIVE SOCIETIES:

- Cooperative Societies Act, 1940 (as adapted)
- * Cooperative Society Rules: [List]
- East Pakistan Cooperative Societies Ordinance
- * Related Rules: [List]

Analysis Notes:

- Significant volume of adaptation orders translating British Indian law into the Pakistani legal framework
- Martial law periods created parallel legal structures
- Land reform legislation generated extensive subordinate rules
- Many rules from this period continue in force in Bangladesh today

PART V: SUBJECT-WISE ANALYSIS

[Detailed analysis for each of the 20 subject categories showing:

- Number and types of subordinate legislations
- Key instruments
- Evolution across the three eras
- Current relevance and status
- Cross-references]

[To be completed with data from Master Inventory]

PART VI: STATUS ANALYSIS

A. ACTIVE/IN FORCE:

[List of all subordinate legislations determined to be currently in force in Bangladesh, with their amendment history]

B. AMENDED:

[List of subordinate legislations that have been amended, with complete amendment histories]

C. REPEALED:

[List of repealed subordinate legislations with repealing instruments and dates of repeal]

D. OBSOLETE/SPENT:

[List of subordinate legislations that are obsolete or spent, with reasons for obsolescence]

E. SUPERSEDED:

[List of subordinate legislations superseded by later instruments]

F. STATUS UNCERTAIN:

[List of subordinate legislations whose current status could not be definitively determined, with notes on the uncertainty]

PART VII: CROSS-REFERENCING ANALYSIS

A. PARENT ACT 'I' SUBORDINATE LEGISLATION MAPPING

[Complete mapping showing each parent Act and all subordinate legislations made thereunder]

B. INTER-SUBORDINATE LEGISLATION REFERENCES

[Mapping of cross-references between subordinate legislations]

C. AMENDMENT CHAINS

[Tracking of amendment histories for subordinate legislations that have been repeatedly amended]

D. REPEAL AND REPLACEMENT CHAINS

[Tracking of repeal and replacement sequences]

PART VIII: GAPS, INCONSISTENCIES, AND RECOMMENDATIONS

A. IDENTIFIED GAPS:

1. [Gap description and impact]
 2. [Gap description and impact]
- [To be populated]

B. IDENTIFIED INCONSISTENCIES:

1. [Inconsistency description between specific instruments]

2. [Inconsistency description between specific instruments]
[To be populated]

C. OVERLAPPING PROVISIONS:

1. [Overlap description]
2. [Overlap description]
[To be populated]

D. RECOMMENDATIONS:

1. [Recommendation for legislative reform]
2. [Recommendation for consolidation]
3. [Recommendation for repeal of obsolete instruments]
[To be populated]

Prepared by: The Legal Empire

Date: [Insert Date]

Version: 1.0

END OF ANALYSIS AND CLASSIFICATION REPORT

6

CODE — VOLUME I (1799-1858)

CODE OF DELEGATED/SUBORDINATE LEGISLATION OF BANGLADESH
VOLUME I: PERIOD 1799-1858

EAST INDIA COMPANY PERIOD — BENGAL PRESIDENCY

Package SD-1

Prepared by: THE LEGAL EMPIRE | www.thelegalempire.org

EOI Ref No. : 55.00.0000.120.14.065.24.1493

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PREFACE

This Volume I of the Code of Delegated/Subordinate Legislation of Bangladesh (Package SD-1) covers the foundational period of 1799-1858, during which the Bengal Presidency was governed by the East India Company under successive Charter Acts granted by the British Parliament.

The subordinate legislations of this period — primarily the Bengal Regulations (1793-1834) and rules/orders made under post-1834 Acts — represent the earliest layer of codified law applicable to the territory of present-day Bangladesh. While most of these instruments have been repealed or superseded, they remain historically significant as the foundation upon which the entire subsequent legal framework was built.

This Volume is organized thematically by subject matter, with each entry providing the full citation, parent authority, scope, current status, and relevant cross-references.

TABLE OF CONTENTS — VOLUME I

- Chapter 1 : Land and Revenue
 - Chapter 2 : Civil Justice and Procedure
 - Chapter 3 : Criminal Justice and Procedure
 - Chapter 4 : Police and Public Order
 - Chapter 5 : Personal Law, Family, and Succession
 - Chapter 6 : Religious and Charitable Endowments
 - Chapter 7 : Registration and Stamps
 - Chapter 8 : Trade, Commerce, and Excise
 - Chapter 9 : Constitutional and Administrative
 - Chapter 10 : Miscellaneous
 - Appendix A : Chronological Index of Bengal Regulations (1793-1834)
 - Appendix B : Glossary of Legal Terms
 - Appendix C : Cross-Reference Table (Regulation !' Succeeding Legislation)
-

CHAPTER 1: LAND AND REVENUE

This chapter contains all subordinate legislations relating to land tenure, revenue administration, survey and settlement, rent assessment and recovery, and related matters during 1799-1858.

SIGNIFICANCE:

Land and revenue formed the backbone of governance in Bengal under the East India Company. The Permanent Settlement of 1793 (implemented through Bengal Regulation VIII of 1793) created the zamindari system that shaped land relations in Bengal until its abolition by the East Bengal State Acquisition and Tenancy Act, 1950. The subordinate legislations in this chapter established the administrative framework for revenue collection, tenant

protection, survey operations, and dispute resolution.

1.1 BENGAL REGULATION VIII OF 1793

Regulation for the Permanent Settlement of the Revenues of Bengal, Bihar and Orissa

Date of Enactment : 22 March 1793

Authority : Governor-General in Council (Lord Cornwallis)

Legal Basis : Charter Act of 1793

Gazette Reference : Bengal Gazette, 1793

Territorial Scope : Bengal, Bihar, and Orissa Provinces

Commencement : 22 March 1793

PROVISIONS:

- Establishment of the Permanent Settlement — fixed revenue assessment on zamindari estates in perpetuity
- Definition of zamindari rights and obligations
- Revenue payment schedules and procedures
- Penalties for default in revenue payment
- Procedure for sale of defaulting estates (sunset law)
- Protection of tenant rights under zamindars
- Board of Revenue oversight powers

STATUS: Historical / Superseded

- The zamindari system was abolished by the East Bengal State Acquisition and Tenancy Act, 1950 (Act XXVIII of 1951)
- However, the principles of the Permanent Settlement influenced all subsequent land legislation in Bengal

CROSS-REFERENCES:

- Bengal Regulation I of 1799 (Revenue Administration)
- Bengal Regulation I of 1800 (Decennial Settlement)
- Bengal Regulation V of 1812 (Revenue Arrears Sale)
- Bengal Tenancy Act, 1885
- East Bengal State Acquisition and Tenancy Act, 1950

HISTORICAL NOTES:

The Permanent Settlement is one of the most consequential pieces of legislation in South Asian history. By fixing revenue demands and creating a class of zamindars as intermediary landlords, it shaped social, economic, and political life in Bengal for over 150 years. Its ultimate replacement by the SAT Act of 1950 was a landmark of post-independence land reform.

1.2 BENGAL REGULATION I OF 1799

Regulation for the Administration of Justice in Revenue Matters

Date of Enactment : 1799

Authority : Governor-General in Council

Legal Basis : Charter Act of 1793

Territorial Scope : Bengal Presidency

PROVISIONS:

- Establishment of revenue courts
- Jurisdiction over revenue disputes between zamindars and tenants
- Appeal procedure in revenue cases
- Powers of revenue officers
- Relationship between revenue courts and civil courts

STATUS: Repealed / Superseded

SUCCESSOR: Bengal Tenancy Act, 1885; Code of Civil Procedure, 1908

1.3 BENGAL REGULATION II OF 1799

Regulation for the Administration of the Revenue of Bengal

Date of Enactment : 1799

Authority : Governor-General in Council

Legal Basis : Charter Act of 1793

Territorial Scope : Bengal Presidency

PROVISIONS:

- Revenue assessment procedures
- Collection mechanisms
- Role of Collectors and revenue officers
- Exemptions and remissions
- Reporting requirements to Board of Revenue

STATUS: Repealed / Superseded

1.4 BENGAL REGULATION I OF 1800

Regulation for Decennial Settlement of Revenue

Date of Enactment : 1800

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Ten-year settlement cycle for revenue assessment
- Survey and assessment procedures
- Rights of zamindars during settlement
- Dispute resolution for settlement disagreements

STATUS: Repealed / Superseded

1.5 BENGAL REGULATION VII OF 1799

Regulation for Recovery of Revenue Arrears

Date of Enactment : 1799

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Procedure for recovery of overdue revenue
- Coercive measures against defaulting zamindars
- Attachment and sale of estates
- Timeline for compliance

STATUS: Repealed / Superseded

SUCCESSOR: Bengal Land Revenue Sales Act, 1859

1.6 BENGAL REGULATION V OF 1812

Regulation for Sale of Estates for Arrears of Revenue

Date of Enactment : 1812

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Detailed procedure for sale of defaulting estates

- Notice requirements before sale
- Conduct of revenue sale proceedings
- Rights of purchasers at revenue sales
- Setting aside of sales for irregularity

STATUS: Repealed / Superseded

SUCCESSOR: Bengal Land Revenue Sales Act, 1859

1.7 BENGAL REGULATION XI OF 1825

Bengal Alluvion and Diluvion Regulation

Date of Enactment : 1825

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Rights regarding newly formed alluvial land (chars)
- Impact of diluvion (river erosion) on land rights
- Re-formation rights when eroded land resurfaces
- Revenue liability for alluvial and diluvial land
- Survey procedure for changed land formations

STATUS: Partially in Force

- Core principles regarding alluvion and diluvion rights have been incorporated into subsequent legislation and remain relevant
- Particularly important for riverine areas of Bangladesh

CROSS-REFERENCES:

- State Acquisition and Tenancy Act, 1950
- Survey and Settlement Rules
- Relevant Supreme Court of Bangladesh decisions

HISTORICAL NOTES:

Given Bangladesh's extensive river system and the constant formation and erosion of char lands, the principles established by this regulation remain directly relevant to contemporary land disputes.

1.8 BENGAL REGULATION III OF 1828

Regulation for Revenue Survey and Assessment

Date of Enactment : 1828

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Systematic land survey procedures
- Revenue assessment based on land productivity
- Classification of agricultural land
- Record of rights preparation

STATUS: Repealed / Superseded

SUCCESSOR: Bengal Survey Act, 1875

1.9 BENGAL REGULATION IX OF 1833

Regulation regarding Land Tenures and Rent Recovery

Date of Enactment : 1833

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Classification of land tenures
- Tenant rights and obligations
- Rent recovery procedures
- Protection against rack-renting

STATUS: Repealed / Superseded

SUCCESSOR: Bengal Rent Act, 1859; Bengal Tenancy Act, 1885

[Continues with remaining chapters...]

CHAPTER 2: CIVIL JUSTICE AND PROCEDURE

2.1 BENGAL REGULATION III OF 1793

Regulation for the Administration of Civil Justice

Date of Enactment : 1793

Authority : Governor-General in Council (Lord Cornwallis)

Legal Basis : Charter Act of 1793

Territorial Scope : Bengal, Bihar, and Orissa

PROVISIONS:

- Establishment of civil courts at district level (Diwani Adalat)
- Provincial courts of appeal (Sadar Diwani Adalat)
- Jurisdiction of civil courts
- Civil procedure (pleadings, evidence, decree execution)
- Court fees
- Role of native law officers (pandits and maulvis)

STATUS: Repealed / Superseded

SUCCESSOR: Code of Civil Procedure, 1859/1882/1908

HISTORICAL NOTES:

This regulation established the three-tier civil court system in Bengal: District Courts !' Provincial Courts of Appeal !' Sadar Diwani Adalat. This structure evolved into the modern court hierarchy.

2.2 BENGAL REGULATION IX OF 1793

Regulation regarding Court Fees and Legal Process

Date of Enactment : 1793

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Court fee schedules for civil suits
- Process serving procedures
- Costs and expenses in litigation

STATUS: Repealed / Superseded

SUCCESSOR: Court Fees Act, 1870

2.3 BENGAL REGULATION II OF 1806

Regulation regarding Small Cause Courts

Date of Enactment : 1806

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Establishment of courts for small claims
- Summary procedure for petty disputes

- Monetary jurisdiction limits

STATUS: Repealed / Superseded

SUCCESSOR: Provincial Small Cause Courts Act, 1887

2.4 BENGAL REGULATION VI OF 1813

Regulation for Limitation of Civil Suits

Date of Enactment : 1813

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Time limits for filing civil suits by category
- Computation of limitation period
- Exceptions and extensions

STATUS: Repealed / Superseded

SUCCESSOR: Indian Limitation Act, 1859/1877/1908

2.5 BENGAL REGULATION XXVI OF 1814

Regulation regarding Appeals in Civil Cases

Date of Enactment : 1814

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Appeal procedures from district courts
- Grounds for appeal
- Powers of appellate courts
- Time limits for filing appeals

STATUS: Repealed / Superseded

SUCCESSOR: Code of Civil Procedure, 1908 (Order XLI)

CHAPTER 3: CRIMINAL JUSTICE AND PROCEDURE

3.1 BENGAL REGULATION IV OF 1793

Regulation for the Administration of Criminal Justice

Date of Enactment : 1793

Authority : Governor-General in Council

Legal Basis : Charter Act of 1793

Territorial Scope : Bengal, Bihar, and Orissa

PROVISIONS:

- Establishment of criminal courts (Nizamat Adalat)
- Magisterial jurisdiction
- Criminal procedure
- Punishments (based partly on Muhammadan criminal law initially)
- Role of Qazis and Muftis in criminal proceedings

STATUS: Repealed / Superseded

SUCCESSOR: Indian Penal Code, 1860; Code of Criminal Procedure, 1861/1898

HISTORICAL NOTES:

This regulation initially retained elements of Islamic criminal law (Muhammadan criminal law) for punishments, but these were gradually replaced by secular penal provisions, culminating in the Indian Penal Code of 1860.

3.2 BENGAL REGULATION IX OF 1807

Regulation for Criminal Courts and Procedure (Revised)

Date of Enactment : 1807

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Revised criminal court structure
- Enhanced magisterial powers
- Simplified criminal procedure
- Classification of offences

STATUS: Repealed / Superseded

3.3 BENGAL REGULATION XIV OF 1824

Regulation regarding Juries and Assessors

Date of Enactment : 1824

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Introduction of jury system for certain criminal trials
- Qualification and selection of jurors
- Role of assessors in criminal proceedings
- Verdict procedures

STATUS: Repealed / Superseded

CHAPTER 4: POLICE AND PUBLIC ORDER

4.1 BENGAL REGULATION VI OF 1793

Regulation for Police Administration

Date of Enactment : 1793

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Establishment of police organization under magistrates
- Police duties: prevention and detection of crime
- Arrest and detention powers
- Watch and ward duties

STATUS: Repealed / Superseded

SUCCESSOR: Police Act, 1861

4.2 BENGAL REGULATION VI OF 1810

Regulation for Village Police / Chowkidari System

Date of Enactment : 1810

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Establishment of village watchmen (chowkidars)
- Duties: night patrolling, crime reporting, village security
- Appointment and payment of chowkidars
- Supervision by police and magistrates
- Village chowkidari tax

STATUS: Superseded

SUCCESSOR: Village Chowkidari Act; Police Act, 1861

4.3 BENGAL REGULATION XII OF 1816

Regulation for Suppression of Dacoity

Date of Enactment : 1816

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Special measures for suppression of organized robbery (dacoity)
- Enhanced penalties
- Special police operations
- Community responsibility for harboring dacoits

STATUS: Repealed / Historical

4.4 BENGAL REGULATION III OF 1818

Bengal State Prisoners Regulation

Date of Enactment : 1818

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Power to detain persons without trial (preventive detention)
- Grounds for detention: state security, public order
- Conditions of detention
- Review procedure

STATUS: Repealed

SUCCESSOR: Various preventive detention legislation

HISTORICAL NOTES:

This regulation gave extraordinary detention powers to the executive and was used against political activists, including during the independence movement. The principle of preventive detention continued in subsequent legislation.

4.5 BENGAL REGULATION XIV OF 1818

Regulation for Regulation of Prisons

Date of Enactment : 1818

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Prison administration and management
- Classification of prisoners
- Prison discipline
- Diet and health of prisoners
- Labour and employment in prisons

STATUS: Superseded

SUCCESSOR: Prisons Act, 1894

CHAPTER 5: PERSONAL LAW, FAMILY, AND SUCCESSION

5.1 BENGAL REGULATION IV OF 1793 (Section on Personal Law)

Application of Hindu and Muhammadan Personal Law

Date of Enactment : 1793
Authority : Governor-General in Council
Territorial Scope : Bengal Presidency

PROVISIONS:

- Application of Hindu personal law to Hindus in matters of succession, inheritance, marriage, caste, and religious usage
- Application of Muhammadan (Islamic) personal law to Muslims in matters of succession, inheritance, marriage, dower, and religious observance
- Role of pandits and maulvis as law officers in personal law cases

STATUS: Partially Superseded

- The principle of applying personal law to respective communities continues in Bangladesh
- Specific provisions superseded by codified personal laws

CROSS-REFERENCES:

- Muslim Personal Law (Shariat) Application Act, 1937
- Muslim Family Laws Ordinance, 1961
- Succession Act, 1925

5.2 BENGAL REGULATION VII OF 1829 (Regulation XVII of 1829)

Abolition of Sati (Suttee)

Date of Enactment : 4 December 1829
Authority : Governor-General in Council (Lord William Bentinck)
Territorial Scope : Bengal Presidency (later extended to all India)

PROVISIONS:

- Prohibition of the practice of sati (widow immolation)
- Criminal penalties for abetting or encouraging sati
- Enforcement mechanisms

STATUS: Historical — Absorbed into criminal law

SUCCESSOR: Indian Penal Code, 1860 (provisions on culpable homicide and abetment)

HISTORICAL NOTES:

This regulation was a landmark of social reform in British India, abolishing the practice of sati in Bengal. It was enacted after sustained advocacy by reformer Raja Ram Mohan Roy.

CHAPTER 6-10: [Additional chapters follow the same detailed format]

[Chapters 6-10 covering Religious Endowments, Registration and Stamps, Trade/Commerce/Excise, Constitutional/Administrative, and Miscellaneous follow the same detailed format as above, with full entries for each subordinate legislation identified in the Master Inventory for Era 1.]

APPENDIX A: CHRONOLOGICAL INDEX OF BENGAL REGULATIONS (1793-1834)

Year	Reg. No.	Short Description	Chapter
1793	III	Administration of Civil Justice	2
1793	IV	Administration of Criminal Justice	3
1793	VI	Police Administration	4
1793	VIII	Permanent Settlement of Revenue	1
1793	IX	Court Fees and Legal Process	2
1793	XII	Distillation and Sale of Spirits	8
1793	XV	Hindu and Muhammadan Endowments	6
1793	XXI	Stamp Duties	7
1793	XLIV	Revenue Administration and Collection	1
1799	I	Revenue Justice Administration	1

1799	II	Revenue Administration	1
1799	V	Inheritance and Succession	5
1799	VII	Recovery of Revenue Arrears	1
1800	I	Decennial Revenue Settlement	1
1800	X	Opium Trade	8
1806	II	Small Cause Courts	2
1807	IX	Criminal Courts Revised	3
1810	VI	Village Police / Chowkidari	4
1810	XIX	Salt Manufacture and Trade	8
1812	V	Revenue Arrears / Estate Sale	1
1812	V	Registration of Deeds	7
1813	VI	Limitation of Civil Suits	2
1814	XXVI	Appeals in Civil Cases	2
1816	XII	Suppression of Dacoity	4
1817	VII	Suppression of Thuggee	4
1818	III	State Prisoners (Preventive Detention)	4
1818	XIV	Regulation of Prisons	4
1824	XIV	Juries and Assessors	3
1825	XI	Alluvion and Diluvion	1
1828	III	Revenue Survey and Assessment	1
1829	XVII	Abolition of Sati	5
1830	V	Press and Printing	9
1831	V	Abolition of Provincial Courts	2
1832	VII	Sati-related (additional provisions)	5
1833	IX	Land Tenures and Rent Recovery	1

APPENDIX B: GLOSSARY OF LEGAL TERMS

Term	Meaning
-----	-----
Adalat	Court of justice
Alluvion	Land formed by deposit of soil by river action
Bengal Regulation	Legislation enacted by Governor-General in Council for Bengal Presidency (1793-1834)
Board of Revenue	Central revenue administration body for Bengal
Chowkidar	Village watchman
Collector	Chief revenue officer of a district
Dacoity	Robbery by a group of five or more persons
Debottar	Hindu religious endowment
Diluvion	Loss of land by river erosion
Diwani Adalat	Civil court
Governor-General	Chief executive of British India
Maulvi	Muslim law officer advising courts
Nizamat Adalat	Criminal court
Pandit	Hindu law officer advising courts
Permanent Settlement	Fixed revenue assessment on zamindari estates (1793)
Raiyat	Peasant cultivator / agricultural tenant
Sati/Suttee	Practice of widow self-immolation
Sadar	Chief / principal (as in chief court)
Waqf	Islamic charitable endowment
Zamindar	Landlord holding an estate under revenue settlement

APPENDIX C: CROSS-REFERENCE TABLE

(Bengal Regulations !' Succeeding Legislation)

Bengal Regulation	Succeeded By
-----	-----
Reg. VIII of 1793 (Permanent Settlement)	East Bengal SAT Act, 1950
Reg. III of 1793 (Civil Justice)	Code of Civil Procedure, 1908
Reg. IV of 1793 (Criminal Justice)	Indian Penal Code, 1860; Code of Criminal Procedure, 1898
Reg. VI of 1793 (Police Administration)	Police Act, 1861
Reg. VI of 1813 (Limitation)	Limitation Act, 1908
Reg. IX of 1793 (Court Fees)	Court Fees Act, 1870
Reg. XXI of 1795 (Stamp Duties)	Indian Stamp Act, 1899
Reg. V of 1812 (Revenue)	Bengal Land Revenue Sales Act, 1859

Reg. IX of 1833 (Land Tenures)	Bengal Rent Act, 1859; Bengal Tenancy Act, 1885
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Reg. III of 1828 (Survey)	Bengal Survey Act, 1875
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Reg. XIV of 1818 (Prisons)	Prisons Act, 1894
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Reg. VI of 1810 (Village Police)	Village Chowkidari Act; Police Act, 1861
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Prepared by: The Legal Empire

Version: 1.0

END OF VOLUME I — CODE OF SUBORDINATE LEGISLATION

7

CODE — VOLUME II (1858-1947)

CODE OF DELEGATED/SUBORDINATE LEGISLATION OF BANGLADESH
VOLUME II: PERIOD 1858-1947

BRITISH CROWN RULE — BENGAL PROVINCE / EAST BENGAL

Package SD-1

Prepared by: THE LEGAL EMPIRE | www.thelegalempire.org

EOI Ref No. : 55.00.0000.120.14.065.24.1493

Project Code : 224359600

PREFACE

Volume II of the Code covers the most prolific period for subordinate legislation in Bangladesh's legal history: 1858-1947, spanning nearly ninety years of British Crown rule. Following the transfer of power from the East India Company to the British Crown in 1858, Bengal saw the establishment of a modern legislative framework, with extensive rule-making powers delegated to both central and provincial governments.

This period witnessed the enactment of foundational statutes — the Indian Penal Code (1860), Code of Criminal Procedure (1898), Code of Civil Procedure (1908), and numerous Bengal-specific Acts — each generating substantial bodies of subordinate legislation. The Government of India Acts of 1919 and 1935 further expanded provincial rule-making authority, leading to a significant increase in Bengal-specific subordinate legislation.

Many subordinate legislations from this era remain partially in force in Bangladesh today, making this volume directly relevant to contemporary legal practice and administration.

TABLE OF CONTENTS — VOLUME II

Chapter 1 : Criminal Law, Justice, and Police
Chapter 2 : Civil Law and Justice
Chapter 3 : Land, Revenue, and Tenancy
Chapter 4 : Local Government and Municipal Affairs
Chapter 5 : Education
Chapter 6 : Health and Sanitation
Chapter 7 : Labour and Employment
Chapter 8 : Trade, Commerce, and Industry
Chapter 9 : Finance, Banking, and Taxation
Chapter 10 : Registration and Stamps
Chapter 11 : Transport and Communication
Chapter 12 : Forests, Agriculture, and Fisheries
Chapter 13 : Prisons and Correctional Services
Chapter 14 : Religious and Charitable Endowments
Chapter 15 : Constitutional and Administrative
Chapter 16 : Miscellaneous
Appendix A : Chronological Index of Subordinate Legislations (1858-1947)
Appendix B : Parent Act Cross-Reference Index
Appendix C : Subject Matter Index
Appendix D : Status Index (Active/Amended/Repealed)

CHAPTER 1: CRIMINAL LAW, JUSTICE, AND POLICE

OVERVIEW:

The criminal justice system in Bengal during 1858-1947 was governed primarily

by three foundational statutes: the Indian Penal Code, 1860; the Code of Criminal Procedure, 1898; and the Indian Evidence Act, 1872. Each generated extensive subordinate legislation in the form of rules, circulars, and orders. The police administration was governed by the Police Act, 1861, and the comprehensive Police Regulations of Bengal.

1.1 BENGAL CRIMINAL RULES AND ORDERS

(Practice and Procedure of Criminal Courts)

Parent Act : Code of Criminal Procedure, 1898 (Act V of 1898)

Date : 1898 (comprehensively revised periodically)

Authority : High Court of Calcutta / Government of Bengal

Type : Rules

Gazette Reference : Bengal Gazette (various issues)

PROVISIONS:

Part I — General Rules

- Organization and jurisdiction of criminal courts
- Assignment of cases and distribution of work
- Court hours, sittings, and calendar
- Dress code for courts

Part II — Investigation and Inquiry

- Police investigation procedures
- Magisterial inquiry procedure
- Recording of statements and confessions
- Search and seizure procedures
- First Information Report (FIR) requirements

Part III — Trial Procedure

- Charge framing
- Examination of witnesses
- Documentary evidence
- Arguments and judgments
- Sentencing guidelines

Part IV — Appeals, Revisions, and References

- Appeal filing procedure
- Revision jurisdiction
- Reference to High Court
- Bail procedure (original and appellate)

Part V — Execution of Sentences

- Imprisonment execution
- Fine recovery
- Death sentence execution
- Probation and release

Part VI — Miscellaneous

- Record maintenance and destruction
- Court statistics and returns
- Transfer of cases
- Contempt of court

STATUS: PARTIALLY IN FORCE IN BANGLADESH

- Adapted for East Pakistan and subsequently Bangladesh
- Forms the basis of criminal court practice in Bangladesh
- Known as "Criminal Rules and Orders (Practice and Procedure)"

CROSS-REFERENCES:

- Police Regulations of Bengal (see 1.3)
- Bengal Jail Code (see Chapter 13)
- Evidence Act rules

SIGNIFICANCE FOR BANGLADESH:

These rules, with adaptations, continue to govern the day-to-day functioning of criminal courts in Bangladesh. They are essential reference for all criminal practitioners and judicial officers.

1.2 HIGH COURT CRIMINAL CIRCULARS AND ORDERS (BENGAL)

Parent Act : Code of Criminal Procedure, 1898
Date : Various (1862-1947)
Authority : High Court of Calcutta
Type : Circulars and Orders

DESCRIPTION:

A comprehensive body of practice directions issued by the High Court of Calcutta to subordinate criminal courts in Bengal. These covered:

- Interpretation of statutory provisions
- Standard procedures for specific types of cases
- Sentencing guidelines
- Administrative directions for court management
- Directions on handling of specific offences

STATUS: Historical / Partially superseded

- Many principles incorporated into later practice manuals

1.3 POLICE REGULATIONS OF BENGAL (PRB)

Parent Act : Police Act, 1861 (Act V of 1861)
Date : 1861 (comprehensively revised 1910, 1943)
Authority : Government of Bengal
Type : Regulations
Gazette Reference : Bengal Gazette (published as multi-volume manual)

PROVISIONS:

Volume I — Organization and Administration

- Chapter 1 : General principles of police organization
- Chapter 2 : Recruitment and appointment
- Chapter 3 : Training
- Chapter 4 : Ranks, grades, and pay
- Chapter 5 : Discipline and punishment
- Chapter 6 : Leave, transfer, and retirement
- Chapter 7 : Police stations and jurisdiction
- Chapter 8 : Reporting hierarchy

Volume II — Duties and Procedure

- Chapter 9 : Prevention of crime
- Chapter 10 : Investigation of offences
- Chapter 11 : Arrest, search, and seizure
- Chapter 12 : Handling of property
- Chapter 13 : Diary and record keeping
- Chapter 14 : Relations with magistracy
- Chapter 15 : Public order and crowd control
- Chapter 16 : Traffic and transport regulation

Volume III — Special Subjects

- Chapter 17 : Arms and explosives
- Chapter 18 : Jail escorts and prisoners
- Chapter 19 : Intelligence and political matters
- Chapter 20 : Finger printing and identification
- Chapter 21 : Prosecution management
- Chapter 22 : Police welfare and morale

STATUS: PARTIALLY IN FORCE IN BANGLADESH

- Adapted as East Pakistan Police Rules and subsequently Bangladesh Police Rules
- Remains the foundational reference for police administration

HISTORICAL NOTES:

The PRB is one of the most extensive and detailed bodies of subordinate legislation in Bengal. In its various editions, it ran to several hundred pages across multiple volumes. Its influence on policing practice continues to this day.

1.4 RULES UNDER THE IDENTIFICATION OF PRISONERS ACT, 1920

Parent Act : Identification of Prisoners Act, 1920
Date : 1920
Authority : Government of Bengal
Type : Rules

PROVISIONS:

- Fingerprinting procedures for arrested persons
- Photography of prisoners
- Measurement and identification records
- Maintenance of identification records
- Inter-district sharing of identification data

STATUS: Partially in force

1.5 ARMS RULES (BENGAL)

Parent Act : Indian Arms Act, 1878 / Arms Act, 1878
Date : 1878 (revised 1924, 1937)
Authority : Government of Bengal
Type : Rules

PROVISIONS:

- Licensing of firearms and ammunition
- Conditions for arms possession
- Exemptions (government servants, military)
- Arms dealers licensing
- Import and export of arms
- Penalties for violation

STATUS: Superseded by later Arms Rules

[Volume II continues with Chapters 2-16 following the same detailed format, covering all 90 entries from the Era 2 Master Inventory...]

CHAPTER 2: CIVIL LAW AND JUSTICE

2.1 BENGAL CIVIL RULES AND ORDERS

(Practice and Procedure of Civil Courts)

Parent Act : Code of Civil Procedure, 1908 (Act V of 1908)

Date : 1908 (amended periodically)
Authority : High Court of Calcutta / Government of Bengal
Type : Rules

PROVISIONS:

Part I — Institution of Suits

- Complaint presentation and verification
- Court fee requirements
- Jurisdiction and forum determination
- Cause title and parties

Part II — Interlocutory Proceedings

- Temporary injunctions
- Appointment of receivers
- Attachment before judgment
- Discovery and inspection
- Commission and interrogatories

Part III — Trial and Hearing

- Framing of issues
- Examination of witnesses
- Documentary evidence admission
- Arguments and judgment writing

Part IV — Decree Execution

- Execution application procedure
- Attachment and sale of property
- Arrest and detention of judgment debtor
- Distribution of assets

Part V — Appeals and Revision

- Appeal filing and procedure
- Second appeal to High Court
- Revision jurisdiction

Part VI — Special Proceedings

- Probate and administration
- Guardianship proceedings
- Insolvency proceedings
- Partition suits

STATUS: PARTIALLY IN FORCE IN BANGLADESH

- Adapted for East Pakistan and Bangladesh
- Continues to govern civil court procedure

[Chapters 3-16 follow the same detailed format...]

CHAPTER 3: LAND, REVENUE, AND TENANCY (Key Entries)

3.1 BENGAL TENANCY RULES

Parent Act: Bengal Tenancy Act, 1885 | Status: Superseded by SAT Rules

3.2 SURVEY AND SETTLEMENT RULES (BENGAL)

Parent Act: Bengal Survey Act, 1875 | Status: Partially in Force

3.3 BENGAL PUBLIC DEMANDS RECOVERY RULES

Parent Act: BPDR Act, 1913 | Status: Partially in Force

3.4 BENGAL EMBANKMENT RULES

Parent Act: Bengal Embankment Act, 1882 | Status: Partially in Force

3.5 BENGAL PARTITION RULES (LAND)

Parent Act: Bengal Partition Act, 1897 | Status: Partially in Force

CHAPTER 6: HEALTH AND SANITATION (Key Entries)

6.1 BENGAL EPIDEMIC DISEASE RULES

Parent Act: Epidemic Diseases Act, 1897 | Status: IN FORCE
Note: Used during COVID-19 pandemic in Bangladesh (2020-2023)

6.2 BENGAL PUBLIC HEALTH RULES

Parent Act: Bengal Public Health Act, 1919 | Status: Partially in Force

6.3 POISON RULES (BENGAL)

Parent Act: Poisons Act, 1919 | Status: Partially in Force

APPENDIX A: CHRONOLOGICAL INDEX (1858-1947)

Year	Title	Type	Chapter
1861	Police Regulations of Bengal	Regs	1
1867	Sarais Rules (Bengal)	Rules	16
1870	Court Fees Rules (Bengal)	Rules	2
1871	Cattle Trespass Rules	Rules	12
1875	Survey and Settlement Rules	Rules	3
1878	Arms Rules (Bengal)	Rules	1
1878	Treasure Trove Rules	Rules	16
1880	Vaccination Rules	Rules	6
1880	Bengal Cess Rules	Rules	3
1882	Bengal Embankment Rules	Rules	3
1884	Bengal Education Code	Code	5
1884	Bengal Explosive Rules	Rules	16
1884	Bengal Municipal Rules	Rules	4
1885	Bengal Tenancy Rules	Rules	3
1885	Bengal District Board Rules	Rules	4
1886	Births and Deaths Registration Rules	Rules	10
1887	Civil Courts Act Rules	Rules	2
1887	Small Cause Courts Rules	Rules	2
1887	Suits Valuation Rules	Rules	2
1889	Fisheries Rules	Rules	12
1894	Bengal Jail Code	Code	13
1897	Bengal Partition Rules	Rules	3
1897	Bengal Epidemic Disease Rules	Rules	6
1897	Reformatory Schools Rules	Rules	13
1898	Bengal Criminal Rules and Orders	Rules	1
1899	Stamp Rules	Rules	9
1908	Bengal Civil Rules and Orders	Rules	2
1908	Bengal Registration Rules	Rules	10
1909	Bengal Excise Rules	Rules	9
1909	Prisoners Rules (Transfer)	Rules	13
1910	Police Regulations (Revised)	Regs	1
1910	Bengal Electricity Rules	Rules	16
1912	Bengal Cooperative Societies Rules	Rules	8
1913	Bengal Public Demands Recovery Rules	Rules	3
1913	Companies Rules	Rules	8
1914	Medical Registration Rules	Rules	6
1914	Agricultural Pests Rules	Rules	12
1917	Inland Steam Vessels Rules	Rules	11
1919	Bengal Primary Education Rules	Rules	5
1919	Bengal Public Health Rules	Rules	6
1919	Poison Rules	Rules	6
1919	Bengal Union Board Rules	Rules	4
1920	Identification of Prisoners Rules	Rules	1
1920	Bengal Panchayat Rules	Rules	4
1921	Dacca University Regulations	Regs	5
1922	Bengal Police (Incitement) Rules	Rules	1
1922	Bengal Amusements Tax Rules	Rules	9
1922	Income Tax Rules	Rules	9
1923	Official Secrets Rules	Rules	15
1923	Bengal Boiler Rules	Rules	16
1924	Workmen's Compensation Rules	Rules	7
1927	Bengal Forest Rules	Rules	12
1927	Trade Unions Regulations	Regs	7
1932	Emergency Powers Rules	Rules	15
1934	Bengal Waqf Rules	Rules	14
1934	Bengal Petroleum Rules	Rules	16
1936	Agricultural Debtors Rules	Rules	3
1936	Bengal Cinemas Rules	Rules	16
1936	Payment of Wages Rules	Rules	7
1937	Arms Rules (Revised)	Rules	1
1937	Electricity Rules (Revised)	Rules	16
1939	Hindu Religious Endowments Rules	Rules	14
1939	Defence of India Rules	Rules	15
1940	Bengal Money-Lenders Rules	Rules	2
1940	Arbitration Rules	Rules	2
1940	Bengal Motor Vehicles Rules	Rules	11
1940	Bengal Shops and Establishments Rules	Rules	7
1940	Bengal Drugs Rules	Rules	6

1940	Bengal Jute Regulation Rules	Rules	8
1941	Bengal Maternity Benefit Rules	Rules	7
1943	Police Regulations (Revised)	Regs	1
1943	Hoarding Prevention Rules	Rules	8
1944	Agricultural Income Tax Rules	Rules	9
1946	Bengal Private Forests Rules	Rules	12

APPENDIX B: PARENT ACT CROSS-REFERENCE INDEX

Parent Act	Subordinate Legislation(s)	Ch.
Police Act, 1861	Police Regulations of Bengal	1
Cattle Trespass Act, 1871	Cattle Trespass Rules	12
Court Fees Act, 1870	Court Fees Rules	2
Bengal Survey Act, 1875	Survey & Settlement Rules	3
Arms Act, 1878	Arms Rules	1
Indian Treasure Trove Act, 1878	Treasure Trove Rules	16
Bengal Cess Act, 1880	Bengal Cess Rules	3
Vaccination Act, 1880	Vaccination Rules	6
Bengal Embankment Act, 1882	Embankment Rules	3
Bengal Municipal Act, 1884	Municipal Rules, By-Laws	4
Indian Explosives Act, 1884	Explosive Rules	16
Bengal Tenancy Act, 1885	Bengal Tenancy Rules	3
Bengal Local Self-Govt Act, 1885	District Board Rules	4
Bengal Civil Courts Act, 1887	Civil Courts Rules	2
Provincial Small Cause Cts, 1887	Small Cause Courts Rules	2
Suits Valuation Act, 1887	Suits Valuation Rules	2
Bengal Fishery Act, 1889	Fisheries Rules	12
Charitable Endowments Act, 1890	Charitable Endowments Rules	14
Prisons Act, 1894	Bengal Jail Code	13
Bengal Partition Act, 1897	Partition Rules	3
Epidemic Diseases Act, 1897	Epidemic Disease Rules	6
Reformatory Schools Act, 1897	Reformatory Schools Rules	13
Code of Crim. Procedure, 1898	Criminal Rules & Orders	1
Indian Stamp Act, 1899	Stamp Rules	9
Code of Civil Procedure, 1908	Civil Rules & Orders	2
Indian Registration Act, 1908	Registration Rules	10
Indian Ports Act, 1908	Port Rules	11
Bengal Excise Act, 1909	Excise Rules	9
Indian Electricity Act, 1910	Electricity Rules	16
Cooperative Societies Act, 1912	Cooperative Societies Rules	8
Indian Companies Act, 1913	Companies Rules	8
BPDR Act, 1913	Public Demands Recovery Rules	3
Bengal Medical Act, 1914	Medical Registration Rules	6
Destr. Insects & Pests Act, 1914	Agricultural Pests Rules	12
Inland Steam Vessels Act, 1917	Inland Vessels Rules	11
Bengal Primary Educ. Act, 1919	Primary Education Rules	5
Bengal Public Health Act, 1919	Public Health Rules	6
Bengal Village Self-Govt, 1919	Union Board Rules	4
Poisons Act, 1919	Poison Rules	6
Dacca University Act, 1920	University Regulations	5
Identification of Prisoners, 1920	Identification Rules	1
Bengal Panchayat Act, 1920	Panchayat Rules	4
Indian Income Tax Act, 1922	Income Tax Rules	9
Official Secrets Act, 1923	Official Secrets Rules	15
Indian Boilers Act, 1923	Boiler Rules	16
Workmen's Compensation, 1923	Compensation Rules	7
Trade Unions Act, 1926	Trade Unions Regulations	7
Indian Forest Act, 1927	Forest Rules	12
Bengal Wakf Act, 1934	Waqf Rules	14
Petroleum Act, 1934	Petroleum Rules	16
Bengal Agri Debtors Act, 1936	Agricultural Debtors Rules	3
Payment of Wages Act, 1936	Payment of Wages Rules	7
Bengal Maternity Benefit, 1939	Maternity Benefit Rules	7
Bengal Hindu Rel. End., 1939	Hindu Endowments Rules	14
Defence of India Act, 1939	Defence of India Rules	15
Indian Motor Vehicles, 1939	Motor Vehicles Rules	11
Arbitration Act, 1940	Arbitration Rules	2
Bengal Money-Lenders, 1940	Money-Lenders Rules	2
Drugs Act, 1940	Drugs Rules	6
Bengal Agri Income Tax, 1944	Agri Income Tax Rules	9
Bengal Private Forests, 1946	Private Forests Rules	12

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END OF VOLUME II — CODE OF SUBORDINATE LEGISLATION

8

CODE — VOLUME III (1947-1970)

CODE OF DELEGATED/SUBORDINATE LEGISLATION OF BANGLADESH
VOLUME III: PERIOD 1947-1970

PAKISTAN PERIOD — EAST PAKISTAN / EAST BENGAL

Package SD-1

Prepared by: THE LEGAL EMPIRE | www.thelegalempire.org

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PREFACE

Volume III covers the Pakistan period (1947-1970), during which East Pakistan

(present-day Bangladesh) inherited and adapted the entire corpus of British Indian law while simultaneously developing new subordinate legislation to address the needs of the new nation.

This period is characterized by three distinct legal phases:

- (a) Post-independence adaptation and legal continuity (1947-1958)
- (b) First Martial Law and Ayub Khan era (1958-1969)
- (c) Second Martial Law and pre-independence period (1969-1970)

Many subordinate legislations from this era remain directly in force in Bangladesh today, making this the most practically significant volume of the SD-1 Code. The East Bengal State Acquisition and Tenancy Rules, Muslim Family Laws Rules, Government Servants Conduct Rules, and criminal/civil procedure rules adapted during this period continue to form the backbone of Bangladesh's legal administration.

TABLE OF CONTENTS — VOLUME III

Chapter 1 : Constitutional, Administrative, and Adaptation Orders

Chapter 2 : Land, Revenue, and Tenancy

Chapter 3 : Family and Personal Law

Chapter 4 : Local Government and Municipal Affairs

Chapter 5 : Education

Chapter 6 : Labour and Employment

Chapter 7 : Trade, Commerce, and Industry

Chapter 8 : Finance, Banking, and Taxation

Chapter 9 : Martial Law Instruments

Chapter 10 : Criminal Law and Police

Chapter 11 : Health and Sanitation

Chapter 12 : Transport and Communication

Chapter 13 : Forests, Agriculture, and Fisheries

Chapter 14 : Registration

Chapter 15 : Religious Endowments

Chapter 16 : Miscellaneous

Appendix A : Chronological Index (1947-1970)

Appendix B : Adaptation Orders — Complete List

Appendix C : Martial Law Instruments — Complete List

Appendix D : Subordinate Legislations Still in Force in Bangladesh

CHAPTER 1: CONSTITUTIONAL, ADMINISTRATIVE, AND ADAPTATION ORDERS

OVERVIEW:

Upon independence in 1947, Pakistan inherited the entire body of British Indian law through a series of adaptation orders. These orders modified

existing laws to replace references to British India with Pakistan-specific terminology and adapted the administrative structure accordingly. This chapter covers the foundational adaptation instruments and key administrative rules that shaped governance in East Pakistan.

1.1 PAKISTAN (PROVISIONAL CONSTITUTION) ORDER, 1947

Date : 15 August 1947
Authority : Governor-General of Pakistan
Parent Act : Indian Independence Act, 1947 (Section 8)
Type : Order
Gazette Reference : Gazette of Pakistan Extraordinary, 1947

PROVISIONS:

- Adoption of Government of India Act, 1935 as the provisional constitution of Pakistan (with adaptations)
- Establishment of federal and provincial government structure
- Division of legislative powers between center and provinces
- Continuation of existing courts and judicial system
- Fundamental rights (as per 1935 Act provisions)

STATUS: Historical — Superseded by Constitution of 1956

SIGNIFICANCE:

This order ensured legal continuity at the moment of independence, preventing a legal vacuum. The adapted Government of India Act, 1935 served as Pakistan's constitution until 1956.

1.2 GOVERNMENT OF INDIA (ADAPTATION OF EXISTING LAWS) ORDER, 1947

Date : 1947
Authority : Governor-General of Pakistan
Parent Act : Indian Independence Act, 1947
Type : Order

PROVISIONS:

- Systematic adaptation of all existing British Indian laws:
 - * "British India" replaced with "Pakistan"
 - * "Governor-General of India" replaced with "Governor-General of Pakistan"
 - * "Indian Legislature" replaced with "Pakistan Legislature"
 - * References to provinces adapted for Pakistan's provinces
- Schedule of specific adaptations for individual Acts
- Provisions for future adaptation orders

STATUS: Historical — Purpose fulfilled

SIGNIFICANCE: Ensured seamless legal continuity

1.3 EAST BENGAL (ADAPTATION) ORDERS, 1948-1950

Date : 1948-1950 (series)
Authority : Governor of East Bengal
Parent Act : Government of India Act, 1935 (as adapted)
Type : Orders

PROVISIONS:

- Provincial-level adaptations of inherited laws
- "Bengal" or "Province of Bengal" adapted to "East Bengal"
- References to Calcutta High Court adapted for Dhaka High Court

- Administrative terminology updates

STATUS: Historical

1.4 GOVERNMENT SERVANTS (CONDUCT) RULES, 1964

Date : 1964

Authority : Government of Pakistan

Parent Act : Government Servants (Conduct) Act

Type : Rules

Gazette Reference : Gazette of Pakistan, 1964

PROVISIONS:

Rule 1 : Short title and commencement

Rule 2 : Definitions

Rule 3 : Gifts — restriction on accepting gifts from persons
having official dealings

Rule 4 : Unauthorized communication of official information

Rule 5 : Participation in politics — prohibition on political
activity by government servants

Rule 6 : Connection with press and media

Rule 7 : Evidence before committees

Rule 8 : Subscriptions — restriction on seeking collections

Rule 9 : Business, trade, or employment outside official duties

Rule 10 : Private employment after retirement (cooling-off period)

Rule 11 : Acquisition and disposal of property — reporting
requirements for property transactions

Rule 12 : Insolvency and habitual indebtedness

Rule 13 : Movable, immovable, and valuable property declarations

Rule 14 : Vindication of acts in discharge of official duties

Rule 15 : Misconduct — acts constituting misconduct

Rule 16 : Nepotism and favoritism

Rule 17 : Canvassing support for promotion

STATUS: IN FORCE IN BANGLADESH (with amendments)

SIGNIFICANCE FOR BANGLADESH:

These rules continue to govern the conduct of all government servants in Bangladesh. They are frequently cited in disciplinary proceedings and anti-corruption cases. Key provisions regarding property declaration, prohibition of business, and political neutrality remain actively enforced.

1.5 GOVERNMENT SERVANTS (EFFICIENCY AND DISCIPLINE) RULES, 1960

Date : 1960

Authority : Government of Pakistan

Type : Rules

PROVISIONS:

- Grounds for disciplinary action
- Minor penalties (censure, withholding increment, stoppage of promotion, recovery from pay)
- Major penalties (reduction in rank, compulsory retirement, removal from service, dismissal)
- Inquiry procedure
- Inquiry officer appointment and powers
- Opportunity of defense (show cause notice)

- Appeal procedure and appellate authorities
- Review of disciplinary orders

STATUS: IN FORCE IN BANGLADESH (with amendments)

1.6 EAST PAKISTAN GOVERNMENT SERVANTS (DISCIPLINE AND APPEAL) RULES, 1961

Date : 1961
Authority : Governor of East Pakistan
Type : Rules

PROVISIONS:

- Provincial disciplinary framework complementing central rules
- Procedure for provincial disciplinary proceedings
- Provincial appellate authorities
- Time limits for disciplinary proceedings

STATUS: IN FORCE (adapted for Bangladesh)

1.7 CIVIL SERVICE RULES (PAKISTAN / EAST PAKISTAN)

Date : 1947 (adapted from British Indian CSR)
Authority : Government of Pakistan / East Pakistan
Type : Rules

PROVISIONS:

Volume I — General Rules

- Classification of government servants
- Pay scales and allowances
- Increments and efficiency bars
- General conditions of service

Volume II — Leave Rules

- Types of leave (casual, earned, half-pay, extraordinary)
- Leave accumulation and encashment
- Maternity/paternity leave
- Study leave
- Leave salary computation

Volume III — Pension Rules

- Pension eligibility
- Types of pension (superannuation, retiring, invalid, family)
- Gratuity and death-cum-retirement benefits
- Commutation of pension
- Pension computation formula

Volume IV — Traveling Allowance Rules

- Classification of journeys (tour, transfer, training)
- Entitlements by grade
- Daily allowance rates
- Transportation claims

STATUS: PARTIALLY IN FORCE

- Many provisions continue to apply; others superseded by Bangladesh-specific service rules
-

CHAPTER 2: LAND, REVENUE, AND TENANCY

OVERVIEW:

The most transformative legislation of the Pakistan period in the field of land law was the East Bengal State Acquisition and Tenancy Act, 1950, which

abolished the zamindari system that had been in place since 1793. The rules made under this Act remain the cornerstone of land administration in Bangladesh today.

2.1 EAST BENGAL STATE ACQUISITION AND TENANCY RULES, 1951

Parent Act : East Bengal State Acquisition and Tenancy Act,
1950 (East Bengal Act XXVIII of 1951)

Date : 1951 (amended periodically)

Authority : Government of East Bengal

Type : Rules

Gazette Reference : East Bengal Gazette, 1951

PROVISIONS:

Part I — Preliminary

Rule 1 : Short title

Rule 2 : Definitions

Rule 3 : Application and scope

Part II — Acquisition of Rent-Receiving Interests

Rule 4 : Procedure for notification of acquisition

Rule 5 : Preparation of Compensation Assessment Roll

Rule 6 : Determination of compensation

Rule 7 : Payment of compensation

Rule 8 : Objections and appeals regarding compensation

Rule 9 : Transfer of management from ex-landlords to government

Part III — Tenancy and Land Holding

Rule 10 : Classification of tenants (raiats)

Rule 11 : Occupancy rights and non-occupancy rights

Rule 12 : Ceiling on agricultural land holdings

Rule 13 : Excess land surrender and redistribution

Rule 14 : Transfer of agricultural land — restrictions and
permissions

Rule 15 : Mutation procedure upon transfer

Rule 16 : Subdivision and consolidation of holdings

Rule 17 : Joint holdings and partition

Part IV — Rent Assessment and Collection

Rule 18 : Rent assessment procedure

Rule 19 : Rent rolls and demand registers

Rule 20 : Rent collection procedure

Rule 21 : Receipt issuance

Rule 22 : Arrear rent recovery

Rule 23 : Certificate case procedure for rent arrears

Part V — Survey and Record of Rights

Rule 24 : Survey operations procedure

Rule 25 : Preparation and maintenance of Record of Rights (RoR)

Rule 26 : Correction of records

Rule 27 : Khatian (record of rights) preparation

Rule 28 : Map preparation and maintenance

Part VI — Miscellaneous

Rule 29 : Appeal procedure

Rule 30 : Forms and schedules

Rule 31 : Penalties for non-compliance

STATUS: IN FORCE IN BANGLADESH

SIGNIFICANCE FOR BANGLADESH:

These are among the most important and frequently applied subordinate legislations in Bangladesh. They govern all aspects of land administration including:

- Mutation (ownership transfer recording)
- Survey and settlement operations
- Rent/land revenue collection
- Land ceiling enforcement
- Agricultural land transfer restrictions

CROSS-REFERENCES:

- State Acquisition and Tenancy Act, 1950 (parent Act)
- Survey Act / Survey and Settlement Rules
- Land Management Manual
- Non-Agricultural Tenancy Act, 1949

2.2 NON-AGRICULTURAL TENANCY RULES, 1949

Parent Act : Non-Agricultural Tenancy Act, 1949
Date : 1949
Authority : Government of East Bengal
Type : Rules

PROVISIONS:

- Rights of non-agricultural tenants (urban and commercial land)
- Rent assessment for non-agricultural tenancies
- Transfer and succession of non-agricultural tenancies
- Eviction procedure and grounds
- Dispute resolution

STATUS: IN FORCE IN BANGLADESH

2.3 EAST PAKISTAN SURVEY AND SETTLEMENT RULES

Parent Act : Survey Act / SAT Act, 1950
Date : 1955 (revised)
Authority : Government of East Pakistan
Type : Rules

PROVISIONS:

- Survey team composition and qualification
- Survey methodology (plane table, chain survey, etc.)
- Cadastral map preparation standards
- Record of rights (khatian) preparation procedure
- Public verification (attestation) process
- Objection and correction procedure
- Final publication of records

STATUS: IN FORCE IN BANGLADESH

CHAPTER 3: FAMILY AND PERSONAL LAW

3.1 MUSLIM FAMILY LAWS RULES, 1961

Parent Act : Muslim Family Laws Ordinance, 1961
(Ordinance VIII of 1961)
Date : 1961
Authority : Government of Pakistan

Type : Rules

Gazette Reference : Gazette of Pakistan, 1961

PROVISIONS:

Chapter I — Marriage Registration

- Rule 1 : Appointment of Nikah Registrars (Marriage Registrars)
- Rule 2 : Qualifications for appointment as Nikah Registrar
- Rule 3 : Jurisdiction of Nikah Registrars
- Rule 4 : Marriage registration procedure
- Rule 5 : Nikahnama (marriage contract) — prescribed form
- Rule 6 : Contents of Nikahnama
- Rule 7 : Dower (mehr) — recording and acknowledgment
- Rule 8 : Fee schedule for marriage registration
- Rule 9 : Register maintenance and returns

Chapter II — Polygamy

- Rule 10 : Application for permission to contract another marriage
- Rule 11 : Arbitration Council procedure for polygamy applications
- Rule 12 : Conditions for granting permission
- Rule 13 : Existing wives' consent/objection procedure
- Rule 14 : Penalties for violation

Chapter III — Talaq (Divorce)

- Rule 15 : Notice of talaq — prescribed form and procedure
- Rule 16 : Service of notice on Chairman (Union Council)
- Rule 17 : Copy of notice to wife
- Rule 18 : 90-day waiting period
- Rule 19 : Arbitration Council formation for reconciliation
- Rule 20 : Arbitration Council procedure
- Rule 21 : Effect of non-reconciliation — divorce becomes effective
- Rule 22 : Record of divorce

Chapter IV — Maintenance

- Rule 23 : Application for maintenance by wife
- Rule 24 : Arbitration Council procedure for maintenance
- Rule 25 : Maintenance order and enforcement
- Rule 26 : Maintenance during iddat period

Chapter V — Succession

- Rule 27 : Inheritance rights of grandchildren
(orphaned grandchildren's share)
- Rule 28 : Procedure for claiming inheritance

Chapter VI — General

- Rule 29 : Forms prescribed under the Rules
- Rule 30 : Fee schedule
- Rule 31 : Penalties for non-compliance

STATUS: IN FORCE IN BANGLADESH

SIGNIFICANCE FOR BANGLADESH:

These rules are critically important — they govern:

- All Muslim marriages in Bangladesh (registration is mandatory)
- Divorce procedure (talaq notice and 90-day reconciliation period)
- Polygamy restrictions (prior permission required)
- Maintenance rights of wives
- Succession of orphaned grandchildren

These rules are applied daily by Union Council Chairmen, Nikah

CHAPTER 9: MARTIAL LAW INSTRUMENTS

OVERVIEW:

Pakistan experienced two martial law periods during 1947-1970, each generating significant subordinate legislation:

- (a) First Martial Law: 7 October 1958 — 8 June 1962 (Ayub Khan)
- (b) Second Martial Law: 25 March 1969 — 20 December 1971 (Yahya Khan)

Martial law instruments took the form of Martial Law Orders (MLOs), Martial Law Regulations (MLRs), and Presidential Orders. While most have been repealed, some provisions were absorbed into subsequent legislation.

9.1 MARTIAL LAW (GENERAL) ORDERS, 1958

Date : October 1958 onwards
Authority : Chief Martial Law Administrator (Gen. Ayub Khan)
Type : Orders

KEY ORDERS:

- MLO No. 1 : Proclamation of Martial Law, abrogation of Constitution of 1956
- MLO No. 2 : Continuation of existing laws and courts
- MLO No. 3 : Powers of Martial Law Administrators
- MLO No. 5 : Restriction on political activities
- MLO No. 9 : Screening of government servants
- MLO No. 12 : Press censorship
- MLO No. 15 : Anti-hoarding and anti-profiteering
- MLO No. 18 : Land reform measures

STATUS: Historical — Martial law lifted 1962

9.2 ELECTIVE BODIES (DISQUALIFICATION) ORDER, 1959 (EBDO)

Date : 1959
Authority : President of Pakistan
Type : Order

PROVISIONS:

- Disqualification of specified politicians from public office
- Procedure for disqualification
- Duration of disqualification
- Appeal procedure (limited)

STATUS: Repealed

9.3 LEGAL FRAMEWORK ORDER, 1970

Date : 30 March 1970
Authority : President of Pakistan (Gen. Yahya Khan)
Type : Order

PROVISIONS:

- Framework for transfer of power to elected representatives
- General elections to be held on basis of adult franchise
- Seat allocation between East and West Pakistan (167 vs 144 based on population)
- Time limit for constitution-making (120 days)
- Principles of federalism, Islamic provisions, provincial autonomy

- Presidential approval required for constitution

STATUS: Historical

SIGNIFICANCE:

This order led to the landmark 1970 general elections in which the Awami League won 167 out of 169 East Pakistan seats. The subsequent refusal to transfer power led to the Liberation War and the birth of Bangladesh on 16 December 1971.

APPENDIX D: SUBORDINATE LEGISLATIONS STILL IN FORCE IN BANGLADESH

The following subordinate legislations from the Pakistan period (1947-1970) remain in force in Bangladesh as of the date of this Code:

S/N	Title	Ref. No.	Chapter
1	Government Servants (Conduct) Rules, 1964	SD-1/E3/0005	1
2	Govt Servants (Efficiency & Disc.) Rules	SD-1/E3/0006	1
3	EP Govt Servants (Disc. & Appeal) Rules	SD-1/E3/0007	1
4	Civil Service Rules (adapted)	SD-1/E3/0008	1
5	EB State Acquisition & Tenancy Rules, 1951	SD-1/E3/0013	2
6	Non-Agricultural Tenancy Rules, 1949	SD-1/E3/0015	2
7	EP Survey and Settlement Rules	SD-1/E3/0017	2
8	EP Public Demands Recovery Rules	SD-1/E3/0018	2
9	Muslim Family Laws Rules, 1961	SD-1/E3/0020	3
10	Muslim Family Laws (Registration) Rules	SD-1/E3/0021	3
11	Child Marriage Restraint Rules	SD-1/E3/0022	3
12	Guardians and Wards Rules	SD-1/E3/0024	3
13	EP Agricultural Income Tax Rules	SD-1/E3/0050	8
14	EP Criminal Rules and Orders	SD-1/E3/0061	10
15	EP Police Rules	SD-1/E3/0062	10
16	EP Jail Code / Prison Rules	SD-1/E3/0065	10
17	EP Public Health Rules	SD-1/E3/0069	11
18	EP Registration Rules	SD-1/E3/0079	14

NOTE: "In force" includes instruments that have been adapted/amended for Bangladesh but whose core framework originates from this period.

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Version: 1.0

END OF VOLUME III — CODE OF SUBORDINATE LEGISLATION

SUMMARY OF FINDINGS AND RECOMMENDATIONS

SUMMARY OF FINDINGS AND RECOMMENDATIONS
PACKAGE SD-1 (1799-1970)

CODE OF DELEGATED/SUBORDINATE LEGISLATION OF BANGLADESH

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1. EXECUTIVE SUMMARY

This document presents the summary of findings, key observations, and recommendations arising from the comprehensive identification, collection, analysis, classification, and codification of delegated/subordinate legislations of Bangladesh covering the period 1799-1970 under Package SD-1.

TOTAL SUBORDINATE LEGISLATIONS IDENTIFIED: 225 (representative inventory)

- Era 1 (1799-1858): 45 entries
- Era 2 (1858-1947): 90 entries
- Era 3 (1947-1970): 90 entries

NOTE: The actual number of individual subordinate legislations (including all notifications, orders, circulars, and amendments) enacted during 1799-1970 is estimated to be in the thousands. This Code focuses on the most significant and representative instruments, with provision for continued expansion through gazette research.

2. KEY FINDINGS

FINDING 1: LEGAL CONTINUITY ACROSS ERAS

The legal system of Bangladesh demonstrates remarkable continuity across three political eras. Subordinate legislations enacted during the British period were adapted for Pakistan and subsequently for Bangladesh, creating layers of legal evolution that can be traced from 1793 to the present day.

FINDING 2: SIGNIFICANT BODY OF LEGISLATION STILL IN FORCE

Approximately 32% of identified Era 2 subordinate legislations and 20% of Era 3 subordinate legislations remain partially or fully in force in Bangladesh today. These include foundational rules governing:

- Criminal and civil court procedure
- Police administration
- Land and revenue administration
- Marriage, divorce, and family law
- Government service conditions
- Prison administration
- Forest management
- Registration of documents

FINDING 3: LAND AND REVENUE DOMINANCE

Land and revenue-related subordinate legislations form the largest single category across all three eras, reflecting the central importance of land administration in Bengal's governance throughout history. The transition from the Permanent Settlement (1793) through the Bengal Tenancy Act (1885) to the State Acquisition and Tenancy Act (1950) represents the most significant arc of legislative evolution.

FINDING 4: VOLUME DISPARITY ACROSS ERAS

Era 2 (1858-1947) produced the largest volume of subordinate legislation, owing to:

- The 89-year duration

- Expanded rule-making powers under the Government of India Acts
- Provincial autonomy under the 1935 Act
- Wartime emergency legislation
- Proliferation of subject-specific legislation

FINDING 5: ADAPTATION CHALLENGES

The successive adaptation of laws (British India !' Pakistan !' Bangladesh) created instances where:

- Terminology was incompletely updated
- Cross-references became broken or circular
- Some instruments fell through adaptation gaps
- Status of certain instruments became ambiguous

FINDING 6: MARTIAL LAW COMPLEXITY

The two martial law periods (1958-1962, 1969-1970) created a parallel body of subordinate legislation that intersected with and sometimes contradicted the regular legal framework. While most martial law instruments were repealed, some provisions were absorbed into subsequent legislation without clear tracing.

FINDING 7: ARCHIVAL GAPS

Significant gaps exist in the archival record, particularly for:

- Early Bengal Regulations (pre-1800)
- Municipal by-laws and local body rules
- Wartime emergency notifications
- Some categories of gazette notifications
- Persian/Urdu language documents from the early period

3. STATISTICAL ANALYSIS

A. STATUS DISTRIBUTION (ALL ERAS):

Status	Count	Percentage
In Force	18	8.0%
Partially in Force	56	24.9%
Superseded	108	48.0%
Repealed	20	8.9%
Historical	18	8.0%
Obsolete/Spent	5	2.2%

B. SUBJECT DISTRIBUTION (TOP 10):

Rank	Subject	Count	%
----- ----- -----			
1	Land and Revenue	29	12.9%
2	Constitutional and Administrative	28	12.4%
3	Criminal Law and Justice	18	8.0%
4	Civil Law and Justice	17	7.6%
5	Local Government	16	7.1%
6	Trade, Commerce, Industry	16	7.1%
7	Education	14	6.2%
8	Labour and Employment	13	5.8%
9	Finance and Taxation	12	5.3%
10	Health and Sanitation	11	4.9%

C. TYPE DISTRIBUTION:

Type	Count	Percentage
Rules	150	66.7%
Regulations	15	6.7%
Orders	25	11.1%
By-Laws	5	2.2%
Circulars	6	2.7%
Bengal Regulations	15	6.7%
Others	9	4.0%

4. RECOMMENDATIONS

RECOMMENDATION 1: COMPREHENSIVE GAZETTE RESEARCH

The representative inventory of 225 entries should be expanded through systematic, page-by-page examination of every issue of:

- Bengal Gazette / Calcutta Gazette (1793-1947)
- East Bengal / East Pakistan Gazette (1947-1970)
- Gazette of India / Gazette of Pakistan (central legislation)

This will likely increase the inventory to several thousand entries.

RECOMMENDATION 2: REPEAL OF OBSOLETE LEGISLATION

Approximately 48% of identified subordinate legislations are "superseded" — meaning they have been effectively replaced but not formally repealed.

Formal repeal of these instruments is recommended to:

- Clarify the legal landscape
- Prevent confusion in legal proceedings
- Align the statute book with legal reality

Priority instruments for formal repeal:

- a) All Bengal Regulations (1793-1834) that are not already repealed
- b) British-era emergency/wartime rules
- c) Pre-1950 land tenure rules superseded by SAT Act
- d) Martial law instruments that were never formally repealed

RECOMMENDATION 3: CONSOLIDATION OF ACTIVE INSTRUMENTS

Subordinate legislations that remain in force but have been heavily amended over multiple eras should be consolidated into single, updated instruments. Priority areas:

- a) Criminal Rules and Orders
- b) Civil Rules and Orders
- c) Police Rules/Regulations
- d) Registration Rules
- e) Civil Service Rules

RECOMMENDATION 4: STATUS CLARIFICATION

A number of instruments have "uncertain" status — they may or may not be in force depending on interpretation. The Law Commission or Legislative Division should issue clarifications for these instruments.

RECOMMENDATION 5: DIGITAL DATABASE DEVELOPMENT

A searchable digital database of all subordinate legislations should be developed and maintained, featuring:

- Full text of all instruments
- Amendment history
- Status tracking (real-time updates)
- Cross-referencing capabilities
- Parent Act linkage
- Keyword search
- Public access portal

RECOMMENDATION 6: PERIODIC REVIEW MECHANISM

Establish a standing mechanism for periodic review of subordinate legislation to ensure the Code remains current and accurate. Suggested review cycle: every 5 years.

RECOMMENDATION 7: ARCHIVAL PRESERVATION

Urgent preservation measures are needed for deteriorating gazette archives and historical legal documents. Recommended actions:

- a) Digital scanning of all historical gazettes
- b) Climate-controlled storage for physical archives
- c) Collaboration with National Archives and university libraries

- d) Creation of backup copies in multiple locations

RECOMMENDATION 8: TRANSLATION INITIATIVE

Important subordinate legislations currently available only in English should be officially translated into Bangla to enhance accessibility. Similarly, any Persian/Urdu instruments from the early period should be translated into both Bangla and English.

5. CONCLUSION

The preparation of this Code of Delegated/Subordinate Legislation for the period 1799-1970 reveals a rich, complex, and layered body of subordinate law that has shaped governance and justice in Bangladesh over more than two centuries. The identification and codification exercise has:

- a) Created the first comprehensive inventory of subordinate legislations from the pre-independence period;
- b) Established a classification framework that enables systematic analysis and retrieval;
- c) Identified instruments that remain in force and those that should be formally repealed;
- d) Provided a foundation for future legislative reform and consolidation; and
- e) Contributed to the institutional memory and legal heritage of Bangladesh.

The Legal Empire is honored to have contributed to this nationally significant undertaking and recommends that the findings and recommendations of this report be given careful consideration by the Legislative and Parliamentary Affairs Division and relevant stakeholders.

Prepared by: The Legal Empire

Date: [Insert Date]

Version: 1.0

END OF SUMMARY OF FINDINGS AND RECOMMENDATIONS

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COMPREHENSIVE INDEX — PACKAGE SD-1 (1799-1970)

CODE OF DELEGATED/SUBORDINATE LEGISLATION OF BANGLADESH

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- All adaptation orders, general clauses, legal framework orders

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- SAT Rules, Survey Rules, Land Revenue Rules, Tenancy Rules

Ministry of Home Affairs:

- Police Rules, Arms Rules, Prison Rules, Explosive Rules

Ministry of Education:

- Education Code, University Ordinances, Board Rules

Ministry of Health and Family Welfare:

- Public Health Rules, Drugs Rules, Medical Rules

Ministry of Labour and Employment:

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Ministry of Finance:

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Ministry of Environment, Forest and Climate Change:

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Ministry of Shipping:

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Ministry of Religious Affairs:

- Waqf Rules, Hindu Endowments Rules

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